
**CITY OF GALLATIN
COUNCIL MEETING**

June 19, 2018

6:00 pm

**Dr. J. Deotha Malone
Council Chambers**

- Call to Order – Mayor Paige Brown
- Invocation
- Pledge of Allegiance – Councilman Alexander
- Roll Call: Alexander – Camp – Fennell – Hayes– Love – Mayberry – Vice Mayor Overton
- Approval of Minutes: May 01, 2018 City Council Meeting
- Public Recognition on Agenda-Related Items
- Mayor’s Comments

AGENDA

1. **Second Reading Ordinance No. O18Ø5-29** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 6.807 +/- acre parcel from the PGC-Planned General Commercial District to the R6- High Density Residential District and approving a Preliminary Master Development Plan for Blessings Estates, authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Alexander)**
2. **Second Reading Amended Ordinance No. O18Ø6-30** Ordinance appropriating \$329,894.14 for 2018 Year End Budget Adjustments **(Councilman Mayberry)**
3. **Second Reading Ordinance No. O18Ø6-31** Ordinance to amend the City of Gallatin, Tennessee Municipal Code, Chapter 18, Stormwater to establish a utility for stormwater management; to establish the function of the utility; to create a special revenue fund and method of funding for the utility; and to fix the effective date of this ordinance **(Councilwoman Love)**
4. **First Reading Ordinance No. O1711-95** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning two (2) parcels totaling approximately 77.43 +/- acres, from the IR-Industrial Restrictive, IG-Industrial General, R15-Medium Density Residential, and R20-Low Density Residential Districts to R15-Medium Density Residential Planned Residential Development (R15-PRD) District and approving a Preliminary Master Development for Langley Estates, located east and north of Coles Ferry Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Camp)**

6. **Resolution No. R18Ø1-1** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a plan of services upon the annexation of a parcel (Tax Map 104, Parcel 093.00), consisting of 80.243 (+/-) acres, located west of Old Douglas Lane, east of Highway 109 and north of Hidden Trail (private road), and providing for an effective date. **(Councilman Alexander)**
7. **Resolution No. R18Ø1-2** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing a 80.243 (+/-) Acre Parcel (Tax map 104, Parcel 093.00), Located west of Old Douglas Lane, east of Highway 109, and north of Hidden Trail (private road), into the City of Gallatin; authorizing the annexed parcel to be indicated on the Official Zoning Atlas; authorizing assignment of annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Alexander)**
8. **Second Reading Ordinance No. O18Ø1-1** An ordinance of the city of Gallatin, Sumner County, Tennessee, rezoning an 80.243 (+/-) acre parcel (tax map 104, parcel 093.00) from the Agricultural Residential District to the MRO-Multiple Residential and Office District and approving a Preliminary Master Development Plan for Langford Farms, authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. (Councilman Alexander)
9. **Resolution No. R18Ø6-41** Resolution to revise employee pay plans **(Vice Mayor Overton)**
10. **Resolution No. R18Ø6-42** Resolution amending Gallatin Personnel Rules and Regulations relating to training , personal protective equipment and certification/license reimbursement **(Councilman Fennell)**
11. **Resolution No. R18Ø6-43** Resolution adopting a strategic plan for the City of Gallatin. **(Vice Mayor Overton)**

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- Other Business
 - Public Recognition on Non-Agenda-Related Items
 - Adjourn

City of Gallatin City Council Meeting

May 1, 2018

The Gallatin City Council met in regular session on Tuesday, May 1, 2018 in the Dr. J. Deotha Malone Council Chambers Gallatin City Hall. Mayor Paige Brown called the meeting to order at 6:00 P.M. Councilman Ed Mayberry led the opening prayer and Vice Mayor Jimmy Overton led the Pledge of Allegiance.

Present:

Mayor Paige Brown
Vice Mayor Jimmy Overton
Councilman John D. Alexander
Councilman Steve Camp
Councilman Shawn Fennell
Councilman Craig Hayes
Councilwoman Lynda Love
Councilman Ed Mayberry

Absent:

Others Present

Zach Wilkinson, Public Works Director
Susan High-McAuley, City Attorney
Don Bandy, Police Chief
James Fenton, EDA Director
Nick Tuttle, City Engineer
Lori Smiley, IT Director
Bill McCord, City Planner
Russ Steinike, Building Codes Department

Rachel Nichols, Finance Director
David Brown, Parks & Recreation Dir.
Connie Kittrell, City Recorder
Gallatin News, Reporter
David Gregory, Public Utilities Director
Debbie Johnson, Human Resource Dir.
Robert Richie, Assistant Fire Chief

Approval of Minutes

Mayor Brown presented the March 20, 2018 City Council minutes for approval. Vice Mayor Overton made motion to approve; Councilman Alexander seconded. Motion carried with 7 ayes and 0 nays.

Public Recognition on Agenda Related Items

Mayor opened public recognition on agenda related items. With no one wishing to speak Mayor closed public recognition on agenda related items.

Mayor's Comments

- Mayor Brown thanked everyone for their hard work on the Square Fest and the Balloon Glow; both events were a success.
- Mayor announced the Sumner County Health Committee Open Forum to Share Future Greenways, Trails and Green Space Plans, at the Sumner County Administration Building this Thursday evening from 5:30 to 7:30 P.M.
- Bledsoe's Fort Colonial Fair is Friday, May 4th from 9:00 A.M. until 3:00 P.M. and Saturday, May 5th from 9:00 A.M. until 5:00 P.M.
- Classic Car Cruise In at City Hall Parking Lot is Saturday, May 5th from 4:00 to 8:00 P.M.
- Bledsoe Creek State Park Clean-up is Sunday, May 6th at 400 Ziegler's Fort Road from 1:00 to 5:00 P.M.
- Mayor thanked everyone for their love and support during the loss of her brother.

Agenda

1. Ordinance #O1804-25 - Second Reading

Councilman Mayberry presented this ordinance appropriating funds received in the amount of \$17,763.34 from insurance claims for damages to traffic signals.

Councilman Mayberry made motion to approve; Councilman Alexander seconded. Motion carried with 7 ayes and 0 nays.

2. Ordinance #O1804-26 - Second Reading

Councilman Fennell presented this ordinance to provide revenue for the City of Gallatin, Tennessee for municipal purposes for the 2018 tax year and the 2019 fiscal year.

Councilman Fennell made motion to approve; Councilman Hayes seconded. Motion

3. Amended Ordinance #O1804-27 - Second Reading

Vice Mayor Overton presented this amended ordinance of the City of Gallatin, Tennessee, adopting the annual budget for the fiscal year beginning July 1, 2018 through June 30, 2019.

Vice Mayor Overton made motion to amend by adding the following:

- Reducing the 2016 bond funding for South Water improvements by \$900,000 and using those funds for the four (4) Engineering road projects totaling the same, thus lessening the impact to the general fund unassigned balance by \$ 900,000.
- Adding \$40,000 to the Parks Department for cemetery mowing (Other Contractual Services)
- Adding \$5,000 to the EDA budget for Forward Sumer (Donations/Contributions)

Councilman Alexander seconded the amendment; Motion carried with 7 ayes and 0 nays.

City Recorder Connie Kittrell stated she would like to appeal a request for a position reclassification and a request to make the part time position a full time position. Ms. Kittrell stated she was not sure if this was the appropriate time to do so and she did not want to hold up the passing of the budget.

H.R. Director Debbie Johnson stated that McGrath denied the reclassification. Ms. Johnson added that the part time to full time position was not discussed with McGrath.

Ms. Kittrell explained the need for the reclassification being driven by the number of public record requests received in her office and this employee taking on additional duties.

Council suggested Ms. Johnson schedule a phone conference with Ms. Kittrell, McGrath and H.R. to review the request.

Vice Mayor Overton made motion to approve; Councilman Hayes seconded.

Mayor asked if any other Department Head wanted to come forth with their appeals and no one came forward to speak

Mayor called for the vote on the original motion. Motion carried with 7 ayes and 0 nays.

4. Resolution # R1805-27

Councilwoman Love presented this resolution re-appointing Allen Ramsey to the Gallatin Health Educational and Housing Facilities Board.

Councilwoman Love made motion to approve; Councilman Alexander seconded. Motion carried with 7 ayes and 0 nays.

Other Business

Mayor Brown called for other business and with no one wishing to speak Mayor closed other business.

Public Recognition on Non-Agenda Related Items

Councilman Alexander asked everyone to keep Ricky Clay's family in their prayers for his passing.

Adjourn

Vice Mayor Overton made motion to adjourn; Councilman Alexander seconded. Motion carried with 7 ayes and 0 nays.

Mayor Brown adjourned the meeting at 6:16 P.M.

Mayor Paige Brown

City Recorder Connie Kittrell

ORDINANCE NO. O1805-29

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 6.807 +/- ACRE PARCEL FROM THE PGC- PLANNED GENERAL COMMERCIAL DISTRICT TO THE R6- HIGH DENSITY RESIDENTIAL DISTRICT AND APPROVING A PRELIMINARY MASTER DEVELOPMENT PLAN FOR BLESSINGS ESTATES, AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant submitted a complete application for rezoning a 6.807 +/- acre parcel with a preliminary master development plan located west of Blythe Avenue and north of Hall Street; and

WHEREAS, the property is currently zoned PGC-Planned General Commercial; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Master Development Plan in GMRPC Resolution 2018-028; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the rezoning of a 6.807 +/- acre parcel from the PGC- Planned General Commercial to the R6- High Density Residential as described in Exhibit 'A,' and approves the Preliminary Master Development Plan for Blessings Estates as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING: May 15, 2018,

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description

Exhibit 'B' – Preliminary Master Development Plan

Exhibit 'A'

Being a tract of land in the 9th Civil District of Sumner County Tennessee, and a portion of that property conveyed to Reginald Mudd & Douglas Roundtree in RB 2934, PG 802 R.R.S.C.T., more accurately described as follows:

Beginning at an existing iron pin marking the most southwest corner of herein described tract; Thence N 08°36'57" E, 530.60' to an existing iron pin; Thence S 84°07'27" E, 535.48' to a set iron pin in the westerly margin of Blyth Ave.; Thence with said margin S 05°58'23" W, 533.17' to a set iron pin; Thence now leaving said margin N 83°47'59" W, 559.95' to the point of beginning containing 6.807 acres.

Exhibit 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for Blessings Estates, consisting of a eight (8) sheet plan, prepared by PDR Engineers, Inc. of Nashville, TN, with a final revision date of April 30, 2018, and a fifteen (15) sheet Pattern Book for Blessings Estates, prepared by Dawkins Contracting, LLC of Goodlettsville, TN, dated April 4, 2018, with the following conditions:

1. Correct Tax Map & Parcel Number to read "113G B 022.03".
2. Submit five (5) corrected and folded copies, of the Preliminary Master Development Plan for Blessings Estates, including one (1) full size and four (4) half-size copies to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

MAY 8, 2018

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 2

SUBJECT:

An Ordinance No. O1805-29 of the City of Gallatin, Sumner County, Tennessee, rezoning A 6.807 +/- acre parcel from the PGC- Planned General Commercial district to the R6- High Density Residential district and approving a preliminary master development plan for Blessings Estates.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning A 6.807 +/- acre parcel from the PGC- Planned General Commercial District to the R6- High Density Residential district with a preliminary master development plan for Blessings Estates, containing 34 single family residential units, one (1) proposed right-of-way, and two (2) open space areas, located west of Blythe Avenue and north of Hall Street; Authorizing the revision to be indicated on the Official Zoning Atlas; Repealing conflicting ordinances; Providing for severability; and Providing an effective date.

On April 23, 2018 the Gallatin Municipal-Regional Planning Commission recommended approval of GMRPC Resolution 2018-028. (File 3-7500-18)

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AMENDED ORDINANCE NO. 01806-30

ORDINANCE APPROPRIATING \$370,294.14 FOR
2018 YEAR END BUDGET ADJUSTMENTS

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$8,150 is hereby appropriated from the Special Revenue fund (122) unassigned fund balance to 12242150-730, Shop With A Cop/Firefighter Donations;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$2,611.92 is hereby appropriated to account 31344410-922-78, 2014 Bond Civic Center Expansion, with funds coming from the 2014 Bond accounts as follows:

31144410-923-183, Parking Lot Repaving, \$68.56

31144410-939-89, Triple Creek Soccer Lights, \$159.83

31144410-942-84, Triple Creek Back Stops, \$2,383.53

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$4,098.26 is hereby appropriated from account 31341670-931-104, 2014 Bond Blakemore Ave Repairs, to 31341670-934-106, 2014 Bond Belvedere & Moreland Drainage;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$4,424.07 is hereby appropriated from account 31343000-942, 2014 Bond Dumptruck, Plow & Spreader, to 31343000-847, 2014 Bond Service Center;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$3,112.93 is hereby appropriated from account 31343000-942, 2014 Bond Dumptruck, Plow & Spreader, to 31341670-934-106, 2014 Bond Belvedere & Moreland Drainage;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$13,000 is hereby appropriated from account 127-33210, Federal DOJ Equitable Share, to 12742129-329, Drug Fund Operating Supplies;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$5,963.08 is hereby appropriated from account 31841920-934, 2015 W/S Bond Utility Lines, to 31841920-934-158, Number One Sewer Pump project;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$147,000 is hereby appropriated from account 110-36710, Donations from Businesses, to 11047100-320, IDB Account Activity;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$35,000 is hereby appropriated from account 110-34330, Vehicle Maintenance Charges, to 11043170-261, Maintenance and Repairs Vehicles;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$83,400 is hereby appropriated from account 110-33420, State Training Supplement Revenue, with \$41,400 being appropriated to 11042220-129, Fire Training, and with \$42,000 being appropriated to 11042110-129, Police Training;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$17,750 is hereby appropriated from the general fund unassigned balance to 11041700-912-181, Cambridge Condos for a called bond from last fiscal year;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$5,383.88 is hereby appropriated from the general fund unassigned balance to 11041670-931-1, Gateway Drive Extension for a final payment on the Beretta SIA grant;

AND BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that a sum of \$40,400 is hereby appropriated from the general fund unassigned balance to 11041670-290, Engineering Contracted Services for repairs to a damaged traffic signal; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL, CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY, CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

6/12/2018

DEPARTMENT: Finance

AGENDA #

SUBJECT:

Amend ordinance O1806-30 to include traffic signal modification

SUMMARY:

Add an item to ordinance O1806-30 for the traffic signal at Broadway/Albert Gallatin. The signal was damaged in 2016 and final repairs and modifications have been completed. The insurance recoveries were received in the prior fiscal year but the expenses occurred in the current fiscal year.

RECOMMENDATION:

Approval

ATTACHMENT:

☐
☒

Resolution
Ordinance

☐
☐

Correspondence
Contract

☐
☐

Bid Tabulation
Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

ORDINANCE NO. 001806-31

ORDINANCE TO AMEND THE CITY OF GALLATIN, TENNESSEE MUNICIPAL CODE, CHAPTER 18, STORMWATER TO ESTABLISH A UTILITY FOR STORMWATER MANAGEMENT; TO ESTABLISH THE FUNCTION OF THE UTILITY; TO CREATE A SPECIAL REVENUE FUND AND METHOD OF FUNDING FOR THE UTILITY; AND TO FIX THE EFFECTIVE DATE OF THIS ORDINANCE

WHEREAS, The Federal Clean Water Act, 33 U.S.C. 1251 et seq., requires entities such as the city to implement a stormwater management program within prescribed time frames, and the Environmental Protection Agency, pursuant to the Federal Clean Water Act, 33 U.S.C. 1251 et seq., has published rules for stormwater outfall permits; and

WHEREAS, Tennessee Code Annotated, Section 68-221-1101 provides that the purpose of the stormwater management statute is to facilitate municipal compliance with the Water Quality Act of 1977, and applicable EPA regulations, particularly those arising from § 405 of the Water Quality Act of 1987, and § 402(p) of the Clean Water Act of 1977, and to enable municipalities to regulate stormwater discharges, establish a system of drainage facilities, construct and operate a system of stormwater management and flood control facilities, and to “fix and require payment of fees for the privilege of discharging stormwater,” and

WHEREAS, Tennessee Code Annotated, Section 68-221-1105 provides that among powers municipalities have with respect to stormwater facilities, is the power by ordinance or resolution to:

- (1) Exercise general regulation over the planning, location, construction, and operation and maintenance of stormwater facilities in the municipality, whether owned and operated by the municipality or not;
- (2) Adopt any rules and regulations deemed necessary to accomplish the purposes of Tennessee Code Annotated, Section 68-221-1101 et seq., including the adoption of a system of fees for services and permits;
- (3) Establish standards to regulate the quantity of stormwater discharged and to regulate stormwater contaminants as may be necessary to protect water quality;
- (4) Review and approve plans and plats for stormwater management in proposed developed property;
- (5) Issue permits for stormwater discharges, or for the construction, alteration, extension, or repair of stormwater facilities;
- (6) Suspend or revoke permits when it is determined that the permittee has violated any applicable ordinance, resolution, or condition of the permit;
- (7) Regulate and prohibit discharges into stormwater facilities of sanitary, industrial, or commercial sewage or waters that have otherwise been contaminated; and
- (8) Expend funds to remediate or mitigate the detrimental effects of contaminated land or other sources of stormwater contamination, whether public or private; and

WHEREAS, it is advisable to create a stormwater utility to be responsible for the operation, construction, maintenance and rehabilitation of stormwater facilities; for stormwater system planning, property acquisition related to stormwater management and for review of stormwater

development plans for compliance with stormwater management ordinances, policies, procedures and manuals.

NOW, THEREFORE BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that Chapter 18 of the Gallatin Municipal Code is hereby amended by deleting the current chapter in its entirety and replacing it as follows:

CHAPTER 18
STORMWATER ORDINANCE

Article

- | | |
|-----------|---|
| 1 | General Provisions |
| 2 | Definitions |
| 3 | <i>Stormwater Utility</i> |
| 4 | Waivers |
| 5 | Land Disturbance Permit |
| 6 | Stormwater Management Standards |
| 7 | Erosion Prevention and Sediment Control Performance Standards |
| 8 | Post Construction |
| 9 | Illicit Discharges |
| 10 | Floodway/Floodplain |
| 11 | Enforcement |
| 12 | Penalties |
| 13 | Appeals |

Appendix A

Article 1 General Provisions

(1) Purpose

It is the purpose of this Ordinance to:

- (a) Protect, maintain, and enhance the environment of the City and the public health, safety and the general welfare of the citizens of the City, by controlling discharges of pollutants to the City's stormwater system and to maintain and improve the quality of the receiving waters into which the stormwater outfalls flow, including, without limitation, lakes, rivers, streams, ponds, wetlands, and groundwater of the City;
- (b) Enable the City to comply with the National Pollution Discharge Elimination System (NPDES) General Permit for Discharges from Small Municipal Separate Storm Sewer Systems (MS4) Permit and applicable regulations, 40 CFR 122.26 for stormwater discharges;
- (c) Allow the City to exercise the powers granted in Tennessee Code Annotated § 68-221-1105, which provides that, among other powers cities have with respect to stormwater facilities, is the power by ordinance or resolution to:
 - (i) Exercise general regulation over the planning, location, construction, and operation and maintenance of stormwater facilities in the City, whether or not owned and operated by the City;
 - (ii) Adopt any rules and regulations deemed necessary to accomplish the purposes

- of this statute, including the adoption of a system of fees for services and permits;
- (iii) Establish standards to regulate the quantity of stormwater discharged and to regulate stormwater contaminants as may be necessary to protect water quality;
 - (iv) Review and approve plans and plats for stormwater management in proposed subdivisions or commercial developments;
 - (v) Issue permits for stormwater discharges, or for the construction, alteration, extension, or repair of stormwater facilities;
 - (vi) Suspend or revoke permits when it is determined that the permittee has violated any applicable ordinance, resolution, or condition of the permit;
 - (vii) Regulate and prohibit discharges into stormwater facilities of sanitary, industrial, or commercial sewage or waters that have otherwise been contaminated; and
 - (viii) Expend funds to remediate or mitigate the detrimental effects of contaminated land or other sources of stormwater contamination, whether public or private.

(2) Authority

The City Engineer shall administer all provisions of this chapter, unless noted otherwise.

(3) Jurisdiction

This Ordinance shall govern all properties within the corporate limits for the City of Gallatin, Tennessee.

(4) Right of entry

Designated City staff shall have right-of-entry, at reasonable times, on or upon the property of any person subject to this chapter and access to any permit/document issued hereunder. City staff shall be provided ready access to all parts of the premises for purposes of inspection, monitoring, sampling, inventory, records examination and copying, and performance of any other duties necessary to determine compliance with this chapter.

Designated City staff shall have the right to set up on the property of any person subject to this chapter such devices, as are necessary, to conduct sampling and/or flow measurements of the property's stormwater operations or discharges.

The City has the right to determine and impose inspection schedules necessary to enforce provisions of this chapter

(5) Administering entity

The City's Engineering Division shall administer the provisions of this chapter.

(6) Conflicting standards

If any provisions of this chapter and any other provisions of law impose overlapping or contradictory regulations, or contain any restrictions covering any of the same subject matter, that provision which is more restrictive or imposes higher standards or requirements shall govern.

(7) Stormwater management policy

The City has adopted this Stormwater Ordinance with the intended purpose to safeguard property

and public welfare by regulating stormwater drainage and requiring temporary and permanent provisions for its control. It should be used as a planning and engineering implement to facilitate the necessary control of stormwater.

Article 2 Definitions

For the purpose of this chapter, the following definitions shall apply: Words used in the singular shall include the plural, and the plural shall include the singular; words used in the present tense shall include the future tense. The word “shall” is mandatory and not discretionary. The word “may” is permissive. Words not defined in this section shall be construed to have the meaning given by common and ordinary use as defined in the latest edition of Webster’s Dictionary.

“As built plans” are drawings depicting the elevation, location, and material of stormwater facilities as they were actually constructed.

“Base rate” means the stormwater user’s fee for a single-family unit in the city.

“Best Management Practices” or “BMPs” The physical, structural, and/or managerial practices that, when used alone or in combination, prevent or reduce pollution of water, that have been approved by the City of Gallatin, and that have been incorporated by reference into the Stormwater Ordinance as if fully set out therein.

“Bonds” means revenue bonds, notes, loans or any other debt obligations issued or incurred to finance the costs of construction.

“Brownfield Redevelopment” means redevelopment which may be complicated by the presence or potential presence of a hazardous substance, pollutant, or contaminant.

“Cemetery” means all real property owned by federal, state, and/or local governments, and private enterprises that has been designated by such governmental entity for use as a cemetery.

“City Engineer” means the City of Gallatin City Engineer or his/her designee who is designated to supervise the operation of the stormwater management programs and system.

“Civil penalty” Administrative Penalties - under the authority provided in Tennessee Code Annotated § 68-221-1106, the City declares that any person violating the provisions of this chapter may be assessed a civil penalty by the City of not less than fifty dollars (\$50.00) and not more than five thousand dollars (\$5,000.00) per day for each day of violation. Each day of violation shall constitute a separate violation.

“Common plan of development or sale” is broadly defined as any announcement or documentation (including a sign, public notice or hearing, sales pitch, advertisement, drawing, permit application, zoning request, computer design, etc.) or physical demarcation (including boundary signs, lot stakes, surveyor markings, etc.) indicating construction activities may occur on a specific plot. A common plan of development or sale identifies a situation in which multiple areas of disturbance are occurring on contiguous areas. This applies because the activities may

take place at different times, on different schedules, by different operators.

“Construction” means the erection, building, acquisition, alteration, reconstruction, improvement or extension of stormwater facilities; preliminary planning to determine the economic and engineering feasibility of stormwater facilities; the engineering, architectural, legal, fiscal and economic investigations and studies, surveys, designs, plans, working drawings, specifications, procedures, and other action necessary in the construction of stormwater facilities; and the inspection and supervision of the construction of stormwater facilities.

“Costs of construction” means costs reasonably incurred in connection with providing capital improvements related to stormwater facilities or any portion thereof, including but not limited to the costs of (1) acquisition of all property, real or personal, and all interests in connection therewith including all rights-of-way and easements therefor, (2) physical construction, installation and testing, including the costs of labor, services, materials, supplies and utility services used in connection therewith, (3) architectural, engineering, legal and other professional services, (4) insurance premiums taken out and maintained during construction, to the extent not paid for by a contractor, for construction and installation, (5) any taxes or other charges which become due during construction, (6) expenses incurred by the City of Gallatin or on its behalf with its approval in seeking to enforce any remedy against any contractor or sub-contractor in respect of any default under a contract relating to construction, (7) principal of and interest of any bonds, and (8) miscellaneous expenses incidental thereto.

“Contaminant” means any physical, chemical, biological, or radiological substance or matter in water.

“Debt Service” means, with respect to any particular fiscal year and any particular series of bonds, an amount equal to the sum of (1) all interest payable on such bonds during such fiscal year, plus (2) any principal installments of such bonds during such fiscal year.

“Design storm event” means a hypothetical storm event, of a given frequency interval and duration, used in the analysis and design of a stormwater facility. The estimated design rainfall amounts, for any return period interval (i.e., 2-yr, 5-yr, 25-yr, etc.,) in terms of either 24-hour depths or intensities for any duration, can be found by accessing the following NOAA National Weather Service Atlas 14 data for Tennessee. Other data sources may be acceptable with prior written approval by TDEC Water Resources Division.

“Developed property” means real property which has been altered from its natural state by the creation or addition of buildings, structures, pavement or other impervious surfaces, or by the alteration of the property that results in a meaningful change in the hydrology of the property during and following rainfall events.

“Discharge” means dispose, deposit, spill, pour, inject, seep, dump, leak or place by any means, or that which is disposed, deposited, spilled, poured, injected, seeped, dumped, leaked, or placed by any means including any direct or indirect entry of any solid or liquid matter into the municipal separate storm sewer system.

“Dwelling” or “dwelling unit” means a building or a portion thereof occupied for residential purposes.

“Erosion” means the removal of soil particles by the action of water, wind, ice or other geological agents, whether naturally occurring or acting in conjunction with or promoted by anthropogenic activities or effects.

“Fee(s)” or “Stormwater user’s fee(s)” means the charge established by ordinance or resolution, and levied on owners or users of parcels or pieces of real property to fund the costs of stormwater management and of operating, maintaining, and improving the stormwater system in the city. The stormwater user’s fees are in addition to any other fee that the city has the right to charge under any other rule or regulation of the city.

“Fiscal year” means July 1 of a calendar year to June 30 of the next calendar year, both inclusive.

“Hotspot” means an area where land use or activities generate highly contaminated runoff, with concentrations of pollutants in excess of those typically found in stormwater. The following land uses and activities are deemed stormwater hot spots, but that term is not limited to only these land uses:

- (a) vehicle salvage yards and recycling facilities
- (b) vehicle service and maintenance facilities
- (c) vehicle and equipment cleaning facilities
- (d) fleet storage areas (bus, truck, etc.)
- (e) industrial sites (included on SIC code list)
- (f) marinas (service and maintenance)
- (g) public works storage areas
- (h) facilities that generate or store hazardous waste materials
- (i) commercial container nursery
- (j) restaurants and food service facilities
- (k) other land uses and activities as designated by an appropriate review authority

“Illicit connections” means illegal and/or unauthorized connections to the municipal separate stormwater system whether or not such connections result in discharges into that system.

“Illicit discharge” means any discharge to the municipal separate storm sewer system that is not composed entirely of stormwater and not specifically exempted under Article 9, Section 3.

“Impervious surface” is a surface which is compacted or covered with material that is resistant to infiltration by water, including, but not limited to, most conventionally surfaced streets, roofs, sidewalks, patios, driveways, parking lots, and any other oiled, graveled, graded, compacted, or any other surface which impedes the natural infiltration of surface water.

“Impervious surface area” is the number of square feet of horizontal surface covered by buildings, and other impervious surfaces. All building measurements shall be made between

exterior limits of the structure, foundations, columns or other means of support or enclosure.

“Injection well” is a natural surface depression that has been altered in order to direct fluids into the hole opening. Injection Wells are regulated under TDEC’s Underground Injection Control (UIC) program. Underground injection constitutes an intentional disposal of waste waters in natural depressions, open fractures, and crevices (such as those commonly associated with weathering of limestone).

“Land disturbance” is a change in the existing soil cover (both vegetative and non-vegetative) and/or the existing soil topography. Land-disturbing activities include, but are not limited to, development, re-development, demolition, construction, reconstruction, clearing, grading, filling, and excavation.

“Maintenance” means any activity that is necessary to keep a stormwater facility in good working order so as to function as designed. Maintenance shall include complete reconstruction of a stormwater facility if reconstruction is needed in order to restore the facility to its original operational design parameters. Maintenance shall also include the correction of any problem on the site property that may directly impair the functions of the stormwater facility.

“Municipal ownership” see “public ownership”.

“Municipal Separate Storm Sewer System” or “MS4” means the conveyances owned or operated by the City for the collection, treatment, and transportation of stormwater, including the roads and streets and their drainage systems, catch basins, curbs, gutters, ditches, man-made channels, and storm drains, and where the context indicates, it means the municipality that owns the separate stormwater system.

“National Pollutant Discharge Elimination System permit” or “NPDES permit” means a permit issued pursuant to 33 U.S.C. 1342.

“Non-single-family residential property” means land that is zoned, developed or used solely as residential land, including, but not limited to, duplexes, townhouses, apartments, condominiums, mobile homes, mobile home parks, mixed use buildings and other multi-unit residential developments, or any other lands upon which there are residential structures that contain more than one (1) dwelling unit.

“Off-site facility” means a structural BMP located outside the subject property boundary described in development plan.

“On-site facility” means a structural BMP located within the subject property boundary described in the development plan.

“Operator” in the context of stormwater associated with construction activity, means any person associated with a construction project that meets either of the following two criteria:

- (a) This person has operational or design control over construction plans and specifications, including the ability to make modifications to those plans and specifications. This person is typically considered the owner or developer of the project or a portion of the project,

- and is considered the primary permittee; or
- (b) This person has day-to-day operational control of those activities at a project which are necessary to ensure compliance with a Stormwater Pollution Prevention Plan (SWPPP) for the site or other permit conditions. This person is typically a contractor or a commercial builder who is hired by the primary permittee and is considered a secondary permittee. It is anticipated at different phases of a construction project, different types of parties may satisfy the definition of “operator”.

“Other developed property” means developed property other than single-family or non-single-family residential property. Such property includes, but not be limited to, commercial properties, industrial properties, parking lots, hospitals, schools, recreational and cultural facilities, hotels, offices, churches, and mixed use property.

“Park land” means all real property owned by federal, state and/or local governments that has been designated by such governmental entity for use as a public park.

“Person” means any and all persons, natural or artificial, including any individual, firm or association, and any municipal or private corporation organized or existing under the laws of this or any other state or country.

“Property” means real property.

“Property owner” is the property owner of record as listed in the City’s and/or county’s tax assessment roll. A property owner includes any individual, corporation, firm, partnership, or group of individuals acting as a unit, and any trustee, receiver, or personal representative.

“Private ownership” is all facilities privately owned and maintained.

“Public ownership” or “Municipal ownership” is all facilities having been dedicated to and accepted by the City of Gallatin, Sumner County, State of TN, or Federal Government.

“Redevelopment” means building or constructing new infrastructure in an area that has previously been built or constructed on, and the old infrastructure is to be replaced with new.

“Runoff” means that portion of the precipitation on a drainage area that is discharged from the area.

“Sediment” means solid material, both mineral and organic, that is in suspension, is being transported, or has been moved from its site of origin by air, water, gravity, or ice and has come to rest on the earth’s surface either above or below sea level.

“Single-family residential property” means a developed property which serves the primary purpose of providing one detached dwelling unit for one family or housekeeping unit, but this does include single wide mobile homes, even if attached to the land or there is only one unit on the property.

“Single-family Unit” or “SFU” means the median square footage of the impervious surface area

for a single-family residential property determined pursuant to this ordinance and established by ordinance or resolution.

“Sinkhole” means a cavity in the ground providing a route for surface water to disappear underground.

“Stabilization” means providing adequate measures, vegetative and/or structural, that will prevent erosion from occurring.

“Stormwater” means stormwater runoff, snow melt runoff, surface runoff, street wash waters related to street cleaning or maintenance, infiltration and drainage.

“Stormwater Design Appeals Board” Created as outlined in Article 4 of this chapter with the purpose of reviewing alternative requests to the stormwater management standards outlined in Article 6, and where deemed appropriate, granting alternative approvals as outlined.

“Stormwater facilities” or “Stormwater flood control facilities” means all natural and manmade conveyances and structures for which the partial or full purpose or use is to convey surface water within the jurisdictional boundaries of the city. This includes all natural conveyances for which the city has assumed a level of maintenance responsibility, to which the city has made improvements, against the flooding of which the city must make provision to protect public and private property, or for which the city is accountable under federal or state regulations for protecting the water quality within its jurisdictional boundaries.

“Stormwater hearing authority” Administrative board with the powers and jurisdiction as granted and set out in T.C.A. 68-221-1106 and Article 13 (1) of this chapter. The purpose of said board is to hear stormwater utility billing appeals and civil penalty and damage assessments for violations of the Stormwater ordinance.

“Stormwater management” means the planning, acquisition, design, construction, regulation, improvement, repair, rehabilitation, maintenance, and operation of property, facilities and programs relating to water, flood plains, flood control, grading, erosion, conservation, riparian buffers and sediment control.

“Stormwater management fund” or “fund” means the fund created by this ordinance to operate, maintain, and improve the city’s stormwater system.

“Stormwater management plan” means the set of drawings and other documents that comprise all the information and specifications for the programs, drainage systems, structures, BMPs, concepts and techniques intended to maintain or restore quality and quantity of stormwater runoff to pre-development levels.

“Stormwater runoff” means flow on the surface of the ground, resulting from precipitation.

“Stormwater system” or “System” means all stormwater facilities, stormwater drainage systems and flood protection systems of the City and all improvements thereto which operate to, among other things, control discharges and flows necessitated by rainfall events; and incorporate

methods to collect, convey, store, absorb, inhibit, treat, prevent or reduce flooding, over drainage, environmental degradation and water pollution or otherwise affect the quality and quantity of discharge from such system.

“Stormwater utility” is a management structure that is responsible solely and specifically for the stormwater management program and system.

“Stream” means a surface water that is not a wet weather conveyance. [Rules and Regulations of the State of Tennessee, Chapter 1200-4-3-.04(20)]

“Structural BMPs” means devices that are constructed to provide control of stormwater runoff.

“Surety” is a Letter of Credit or other acceptable form of assurance for completion of improvements, as deemed acceptable by the City Attorney.

“Surface waters” are waters upon the surface of the earth in bounds created naturally or artificially including, but not limited to, streams, other watercourses, lakes, ponds, wetlands, marshes and sinkholes.

“Undeveloped property” means property that is in its natural state and has not been developed; does not have impervious surfaces on it.

“User(s)” means for developed non-exempt property the person listed as receiving utility service or, if there is no such service or person listed, the property owner. It may also mean the property owner of property with multiple utility service accounts on such property.

“Vacant” is property on which there is no structure for which a certificate of occupancy has been issued.

“Watercourse” means a manmade or natural hydrologic feature with a defined linear channel which discretely conveys flowing water, as opposed to sheet-flow. [Rules and Regulations of the State of Tennessee, Chapter 1200-4-3-.04(24)]

“Water quality buffer” is a strip of dense undisturbed perennial native vegetation, either original or reestablished, that borders streams and rivers, ponds and lakes, wetlands, and seeps. Buffer zones are established for the purposes of slowing water runoff, enhancing water infiltration, and minimizing the risk of any potential nutrients or pollutants from leaving the upland area and reaching surface waters. Buffer zones are most effective when stormwater runoff is flowing into and through the buffer zone as shallow sheet flow, rather than in concentrated form such as in channels, gullies, or wet weather conveyances. Therefore, it is critical that the design of any development include management practices, to the maximum extent practical, that will result in stormwater runoff flowing into and through the buffer zone as shallow sheet flow. Buffer zones are established for the primary purpose of protecting water quality and maintaining a healthy aquatic ecosystem in receiving waters.

“Waters of the State” means any and all water, public or private, on or beneath the surface of the

ground, which are contained within, flow through, or border upon Tennessee or any portion thereof except those bodies of water confined to and retained within the limits of private property in single ownership which do not combine or effect a junction with natural surface or underground waters. [T. C. A. § 69-3-103]

“Wetland(s)” means those areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support a prevalence of vegetation typically adapted to life in saturated soil conditions. Wetlands include, but are not limited to, swamps, marshes, bogs, and similar areas.

“Wet weather conveyances” are man-made or natural watercourses, including natural watercourses that have been modified by channelization: that flow only in direct response to precipitation runoff in their immediate locality; whose channels are at all times above the ground water table; that are not suitable for drinking water supplies; and in which hydrological and biological analyses indicate that, under normal weather conditions, due to naturally occurring ephemeral or low flow there is not sufficient water to support fish, or multiple populations of obligate lotic aquatic organisms whose life cycle includes an aquatic phase of at least two months. [Rules and Regulations of the State of Tennessee, Chapter 1200-4-3-.04(25)]

Article 3 Stormwater Utility

(1) General - Legislative findings and policy

The City of Gallatin finds, determines and declares that the stormwater system, which provides for the collection, treatment, storage and disposal of stormwater, provides benefits and services to all property within the incorporated City of Gallatin limits. Such benefits include, but are not limited to: the provision of adequate systems of collection, conveyance, detention, retention, treatment and release of stormwater, the reductions of hazards to property and life resulting from stormwater runoff, improvements in general health and welfare through reduction of undesirable stormwater conditions, and improvements to water quality in the stormwater and surface water system and its receiving waters of the state all of which are managed by the City Engineer as part of the Municipal Separate Storm Sewer System (MS4) Program.

The objective of this ordinance is to promote the public health, safety and general welfare of the City of Gallatin, Tennessee (“City”) and its citizens in compliance with the Federal Clean Water Act, 33 U.S.C. 1251 et seq., and Tennessee Code Annotated, § 68-221-1101 et seq. which require municipalities to implement stormwater management programs, within prescribed time frames, to regulate stormwater discharges to protect water quality; establish adequate systems of collection, conveyance, detention, treatment and release of stormwater; reduce hazards of property and life resulting from stormwater runoff; and enable municipalities to fix and require payment of fees for the privilege of discharging stormwater. The City finds that a stormwater management system which provides for the treatment of stormwater is of benefit and provides services to all property within the City.

(2) Creation of stormwater utility and stormwater management fund

To achieve the purposes of the Federal Clean Water Act and T.C.A. § 68-221-1101 et seq., there

is created a stormwater utility and a stormwater special revenue fund known as the Gallatin Stormwater Management Fund to fund the stormwater utility in and for the city within the Engineering Department. The stormwater utility, pursuant to the policy that may be established by the Mayor and City Council and under the general supervision and control of the City Engineer, with the participation and assistance of other city departments, may:

- (a) Administer the acquisition of property for and the design, construction, maintenance and operation of the stormwater utility system, including capital improvements designated in the capital improvement program;
- (b) Administer and enforce this ordinance and all regulations and procedures adopted relating to the design, construction, maintenance, rehabilitation, operation and alteration of the utility stormwater system, including, but not limited to, the quantity, quality and/or velocity of the stormwater conveyed thereby;
- (c) Advise the Mayor and City Council and other city departments on matters relating to the utility;
- (d) Prepare and revise a comprehensive drainage plan for adoption by the Mayor and City Council;
- (e) Review plans and approve or deny, inspect and accept extensions and connections to the system;
- (f) Enforce regulations to protect and maintain water quality and quantity within the system in compliance with water quality standards established by state, regional and/or federal agencies as now adopted or hereafter amended; or
- (g) Annually analyze the cost of services and benefits provided, and the system and structure of fees, charges, civil penalties and other revenues of the utility.

(3) Administering Entity

The Stormwater Utility shall be part of Gallatin's Engineering Division. The Stormwater Utility, under the direction and supervision of the City Engineer or designee, shall administer the provisions of this Stormwater Utility Ordinance.

(4) Funding of Stormwater Utility

Funding for the Stormwater Utility's activities may include, but not be limited to, the following:

- (a) Stormwater user fees;
- (b) Civil penalties and damage assessments imposed for or arising from the violation of the City of Gallatin Stormwater Ordinance;
- (c) Land Disturbance Permit, stormwater review, and inspection fees; and
- (d) Other funds or income obtained from federal, state, local, and private grants, or revolving funds, and from the Local Government Public Obligations Act of 1986 (Tennessee Code Annotated, title 9, chapter 21).

To the extent that the stormwater user fees collected are insufficient to construct needed stormwater drainage facilities, the cost of the same may be paid from such City of Gallatin funds as may be determined by the Mayor and City Council.

(5) Stormwater Management Fund

All revenues generated by or on behalf of the Stormwater Utility shall be deposited in a Stormwater Management Fund and used to fulfill the purposes of the Stormwater Utility.

(6) Operating Budget

The Mayor and City Council shall adopt, based on a recommendation from the City Engineer, an operating budget for the Stormwater Management Fund each fiscal year. The operating budget shall set forth for such fiscal year the estimated revenues and the estimated costs for operations and maintenance, extension and replacement and debt service.

(7) Stormwater User's Fees Established

There shall be imposed on each and every property in the City of Gallatin, except exempt property, a stormwater user fee, which shall be set from time to time by ordinance or resolution in the fee schedule as adopted by the City of Gallatin. Prior to establishing or amending the stormwater user fee, the City of Gallatin shall advertise its intent to do so by publishing notice in a newspaper of general circulation in the city at least thirty (30) days in advance of the meeting of the City Council at which the fees are considered for adoption or amendment.

(8) Base Rate

The Mayor and City Council shall establish the base rate for the stormwater user's fees. The base rate will be calculated to provide adequate revenues to fund the costs of stormwater management and to provide for the acquisition, operation, maintenance, rehabilitation and capital improvements of the stormwater utility in the city. The base rate is set forth by ordinance or resolution and will be charged to customers on a monthly basis.

The base rate for stormwater user's fees is \$5.00 per month per Single Family Unit (SFU).

(9) Single Family Unit

- (a) There is established, for purposes of calculating the stormwater user's fees, the single-family unit (SFU).
- (b) The SFU is the median square footage of the impervious surface area of a detached single-family residential property.
- (c) The SFU shall be set by the Mayor and City Council in the Stormwater User Fee Schedule as adopted by the Mayor and City Council.
- (d) The single-family unit (SFU) is hereby established as 3,650 square feet of impervious surface area.
- (e) The Mayor and City Council will have the discretion to determine the source of the data from which the SFU is established, taking into consideration the general acceptance and use of such source on the part of other stormwater systems, and the reliability and general accuracy of the source. The Mayor and City Council will have the discretion to determine the impervious surface area of other developed property through property tax assessor's rolls or site examination, mapping information, aerial photographs, and other reliable information.
- (f) The SFU shall be evaluated by the Stormwater Utility as necessary, but the SFU should be evaluated at least every five years.

(10) Property Classification for Stormwater User Fees

For purposes of determining the stormwater user's fee, all properties in the City of Gallatin are classified into one of the following categories:

- (a) Single-family residential property fee. The City Council finds that the monthly stormwater management fees for single-family residential property will be based on the

median amount of impervious surface on a single-family residential lot in the city, which is known as an SFU. There will be a tier system for single-family residential properties based on the amount of impervious surface of single-family residential property. The stormwater user's fee rate for non-exempt single-family residential property, will be placed into one of the following tiers and charged according to the values in the table below:

Description	Monthly Fee
Rate - Single Family Residential Property	Charge per Dwelling Unit
<u>Tier (square foot)</u>	
0 to 2,114	60% of base rate
2,115 to 6,560	100% of base rate
6,561 and beyond	180% of base rate

- (b) Non-single-family residential property fee. For non-single-family residential property the monthly stormwater management fees are defined in the table below:

Description	Monthly Fee
Rate – Non-Single-Family Residential Property	Charge per Dwelling Unit
<u>Subcategory</u>	
Multi-Family (duplex, triplex, quadplex, apartments, etc.)	40% of base rate
Mobile Homes	80% of base rate
Town Homes & Condos	100% of base rate

- (c) Other developed property fee. The fee for developed property that is not single-family residential or non-single-family residential property in the city will be the base rate multiplied by the numerical factor obtained by dividing the total impervious area (square feet) of the property by one SFU, rounded to the nearest tenth. The minimum value shall not be less than one single-family unit.

Classification	Number of SFUs	Stormwater User's Fee Monthly Rate
Other Developed Property – Commercial, industrial, institutional, recreational, cultural, churches, parking lots, etc.	Variable depending on amount of impervious surface area	\$5.00 per SFU per month with a minimum fee of no less than \$5.00 per month

- (d) Exempt property. The following property is exempt from the stormwater user's fee:
- i) Property which stormwater runoff is not discharged into or through the stormwater flood control facilities, or both, of the city
 - ii) Owners and/or operators of agricultural property, in the city, upon which the owner and/or operator conducts activities that enable the owner and/or operator to satisfy the requirements of a qualified farmer or nurseryman, as defined in Tennessee Code Annotated, Section 67-6-207.
 - iii) Undeveloped property that is not altered from its natural state.
 - iv) Developed property with less than five hundred (500) total square feet of impervious surface area per individual lot.
 - v) Improved public transportation ways, including public streets, roads, sidewalks, mobility paths, greenways and trails, airport runways, and internal roads within public facilities which have been conveyed to the city and are used by the general public for motor vehicle transportation.
 - vi) Railroad tracks, provided, however, railroad stations, maintenance buildings or other developed land will not be exempt from stormwater user fees.

For properties not serviced by Gallatin Public Utilities, property classification will be assigned based upon the current use of the property.

(11) Payment of Stormwater User's Fees

Except as otherwise provided in this section, stormwater user's fees for a non-exempt property that receives utility service will be sent to the person named on the account, who shall be responsible for the payment of such fees. For developed property having no utility service, the stormwater user's fees will be sent to the property owner, who shall be responsible for the payment of such fees. Where multiple utility service accounts exist on a single property, the stormwater user's fees may, for good cause shown at the discretion of the city, be sent to the property owner, who shall be responsible for the payment of such fees.

(12) Billing Procedures, Delinquent Bills and Penalties for Late Payment

- (a) The stormwater user's fee must be set at a rate, and collected on a schedule, established by ordinance or resolution.
- (b) Stormwater user's fees will be paid to Gallatin Public Utilities (acting as the collection agency for the City) by any method allowed by Gallatin Public Utilities and shall become delinquent after the due date shown on the bill. If a customer does not have utility service with Gallatin Public Utilities, the City may bill the owner of such property directly through a separate billing process. Such bills are subject to the same delinquency policy established herein.
- (c) Stormwater user's fees shall be subject to a late payment penalty. The late payment penalty shall be applied in the same manner as Gallatin Public Utilities' rules and regulations as it relates to utility bills. The City shall be entitled to recover attorney's fees incurred in collecting delinquent stormwater user's fees. Any charge due under this ordinance which shall not be paid may be recovered at law by the City.
- (d) Pursuant to Tennessee Code Annotated, Section 68-221-1107(b), the city, through its agent Gallatin Public Utilities, may provide for the discontinuance of water utility service

to stormwater users who fail or refuse to pay stormwater user fees, including the right not to accept payment of the water utility bill from any user without receiving at the same time payment of any stormwater fees owed by such user and not to re-establish utility services until such time as all past due stormwater fees owed by such user have been paid and/or the user has performed all acts and discharged all obligations required by this ordinance.

- (e) Pursuant to Tennessee Code Annotated, Section 68-221-1112, each bill for stormwater user's fees will contain the following statement in bold:

THIS FEE HAS BEEN MANDATED BY CONGRESS.

(13) Stormwater User Fee Credit and Adjustment Policy

Adjustments may be requested for errors or omissions on the customer's stormwater user fee. Request for adjustment due to error or oversight of the stormwater user's fee must be submitted to the city within thirty (30) days from the date of the last bill containing the customer's stormwater user fee. Any appeal for adjustment shall be filed in writing and shall state the grounds for the appeal. The City Engineer may request additional information from the appealing party. Adjustments will be determined on the basis of the number of dwelling units or amount of impervious surface area on the property. The City Engineer shall notify the appealing party in writing of the decision. Adjustments can also be made by the city should the city identify an error or oversight, provided the city notifies the customer in advance of the adjustment.

The City of Gallatin will provide a system of credits to reduce stormwater user fees for properties on which stormwater control measures substantially mitigates the peak discharge, runoff volume and/or runoff pollution flowing from such properties or substantially decreases the city's cost of maintaining the stormwater management system.

The Engineering Division will develop written procedures to implement the credit system. No credit will be authorized until the Mayor and City Council approves such written policies to implement the system of credits; a copy of the approved procedures will be on file with the Engineering Division. The procedures may allow credits retroactively for no more than one (1) past year. Any reimbursement granted due to a credit will be reimbursed through the utility billing system. Credits cannot exceed the stormwater utility charge for the customer. Nothing herein will prevent the Mayor and City Council from modifying the adopted system of credits, and such modifications may apply to holders of existing credits.

Article 4 Waivers

(1) General

No waivers will be granted for any construction or site work project. All construction and site work shall provide for stormwater management as required by this ordinance. However, alternatives to the primary requirements may be considered, if:

- (a) Management measures cannot be designed, built and maintained to infiltrate, evapotranspire, harvest and/or use, at a minimum, the first inch of every rainfall event preceded by 72 hours of no measurable precipitation. This first inch of rainfall must be

100% managed with no discharge to surface waters.

- (b) It can be demonstrated that the proposed development is not likely to impair attainment of the objectives of this chapter. Alternative minimum requirements for management of stormwater discharges have been established in a stormwater management plan.
- (c) It can be demonstrated that multiple criteria (not based solely on the difficulty or cost of implementing measures) rule out an adequate combination of infiltration, evapotranspiration, and reuse such as: lack of available area to create the necessary infiltrative capacity; a site use that is inconsistent with capture and reuse of stormwater; physical conditions that preclude use of these practices.

(2) Downstream damage, impairment, etc. prohibited

In order to receive consideration of alternative stormwater management, the applicant must demonstrate to the satisfaction of the Engineering Division that the proposed alternative will not lead to any of the following conditions downstream:

- (a) Deterioration of existing culverts, bridges, dams, and other structures;
- (b) Degradation of biological functions or habitat;
- (c) Accelerated stream bank or streambed erosion or siltation;
- (d) Increased threat of flood damage to public health, life or property.

(3) Alternative Request Procedure

For consideration of an alternative stormwater management measure, a formal request shall be submitted to the City Engineer. The formal request shall be submitted with a stormwater management plan outlining why the primary stormwater management measures cannot be addressed and how the alternative measures will address the provisions outlined in Article 6 section 5 of this Ordinance. The plan shall demonstrate how the proposed development is not likely to impair attainment of the objectives of this chapter.

The alternative request shall be accompanied by a review fee as outlined in Appendix A. The Gallatin Stormwater Design Appeals Board shall review the alternative request and determine whether the alternative request is consistent with the provisions of this chapter. Meetings shall be held within forty (40) days of the alternative request. All appeal determinations shall be applied utilizing a strict interpretation of the Stormwater Ordinance. At any hearing related to an alternative request, the City shall be allowed to present evidence, findings, and recommendations; appealing parties and applicants shall be given an opportunity to present evidence, findings, and recommendations.

The Gallatin Stormwater Design Appeals Board may request additional information; the committee may defer the determination of an alternative request one time to the next regularly scheduled meeting of the Gallatin Stormwater Design Appeals Board. Each alternative request shall be placed on the Gallatin Stormwater Design Appeals Board agenda for the next regularly scheduled meeting, which meeting is at least twenty (20) days after the City Engineer receives the written alternative request.

The City Engineer shall notify the appellant customer of the date of the alternative request review hearing in writing; such written notice shall be given at least ten (10) days prior to the hearing by regular mail at the address provided in the written alternative request document. The decision of the Gallatin Stormwater Design Appeals Board shall be final and conclusive with no further

administrative review.

(4) Establishment of Stormwater Design Appeals Board

The Stormwater Design Appeals Board shall consist of five (5) members, all to be residents of Sumner County. The members shall be appointed by the mayor and confirmed by a majority vote of the City council. Each member shall be appointed for a two-year term, and shall serve until their successor is appointed. Each member shall serve without compensation. Four (4) members shall be required for a quorum to conduct business, but a lesser number of members may adjourn the meeting from day to day in the absence of a quorum. All decisions shall be by a majority vote of those present. Meetings shall be held at the call of the chairperson or mayor, by written notice, as required by law. The members shall elect from the members a chairperson annually.

The five (5) members shall consist of the following:

- (a.) One (1) member to be a licensed professional Engineer or Landscape Architect familiar with stormwater treatment and design
- (b.) One (1) member to be experienced in regulatory enforcement
- (c.) One (1) member to be experienced in land development
- (d.) Two (2) members to be private citizens.

In the event of a conflict of interest involving any member, the mayor shall appoint a temporary replacement for the matter.

(5) Land Disturbance Permit not to be issued where alternatives requested

No Land Disturbance Permit shall be issued where an alternative has been requested until the alternative is approved, unless allowed by the City Engineer. If no alternative is approved, the plans must be resubmitted with a stormwater management plan that meets the primary requirement for on-site stormwater management.

Article 5 Land Disturbance Permit

(1) General

The Land Disturbance Permit process is designed to track all applicable land disturbance activities and ensure they are monitored for compliant erosion prevention and sediment controls, the absence of illicit discharges leaving the site, and compliance with the City's TDEC MS4 general permit, along with any applicable TDEC Construction General Permits, TDEC Aquatic Resources Alteration Permits (ARAP), and any other relevant permits. Tracking of these activities allows inspection, and in cases of non-compliance, enforcement actions to be taken.

(2) Applicability

A Land Disturbance Permit shall be required for any land disturbing activity meeting any of the following requirements:

- (a) Land disturbance of greater than 1 acre.
- (b) Change in elevation of property.
- (c) Land disturbance of less than an acre, if such activities are part of a larger common plan of development, even though multiple, that is a part of separate and distinct land development activities that may take place at different times on different schedules.
- (d) Any land disturbance that requires coverage under a TDEC Construction General Permit.

- (e) Any disturbance that requires coverage under a TDEC ARAP.
- (f) Any disturbance requiring a TDEC Underground Injection Well Permit.
- (g) Any disturbance that the Engineering Division determines that discharges from the site are causing, contributing to, or are likely to contribute to a violation of a state water quality standard.

(3) Exemptions

The following land disturbance activities are exempt from the requirements of obtaining a Land Disturbance Permit:

- (a) Surface mining as is defined in Tennessee Code Annotated Section 59-8-202.
- (b) Such minor land disturbing activities as home gardens and individual home landscaping, home repairs, home additions or modifications, home maintenance work, and other related activities that result in no soil erosion leaving the site.
- (c) Agricultural practices involving the establishment, cultivation or harvesting of products in the field or orchard, preparing and planting of pastureland, farm ponds, dairy operations, livestock and poultry management practices, and the construction of farm buildings.
- (d) Any project carried out under the technical supervision of the NRCS, TDOT, TDEC, or ACOE.
- (e) Installation, maintenance, and repair of any underground public utility lines when such activity occurs on an existing hard surface road, street, or sidewalk which is hard surfaced and such street, curb, gutter or sidewalk construction has been approved.
- (f) Construction, repair or rebuilding of tracks or other related facilities of a railroad company.
- (g) Any emergency activity that is immediately necessary for the protection of life, property, or natural resources.

These activities may be undertaken without a Land Disturbance Permit; however, the persons conducting these excluded activities shall remain responsible for conducting these activities in accordance with provisions of this Ordinance and other applicable regulations including responsibility for controlling sediment, illicit discharges, and runoff.

(4) Supplemental Permit

In cases where a separate owner/operator will be working within an area already covered by an existing Land Disturbance Permit, a supplemental Land Disturbance Permit shall be obtained. The application fee is waived for any supplemental permit. All site operators are required to obtain a supplemental Land Disturbance Permit prior to work commencing. Where applicable, prior to issuance of the supplemental Land Disturbance Permit, the applicant must show coverage under the sites NPDES Construction general permit. Once covered by a permit, all site operators are to be considered as co-permittees, if their involvement in the construction activities affects the same project site, and are held jointly and severally responsible for complying with the terms of the permit.

(5) Application

Application for Land Disturbance Permit shall be made to Engineering Division. Applications are available on the City's Engineering webpage. No land disturbing activities shall take place prior to approval of Land Disturbance Permit application. An application fee of \$50 is required prior to issuance of the Land Disturbance Permit.

(6) Permit Requirements

The following are conditions of Land Disturbance Permit coverage. Any violation of these conditions will make permit holder subject to all enforcement actions and penalties outlined in Articles 11 and 12 of this Ordinance.

- (a) Submittal and approval by Engineering Division Staff of Erosion Prevention and Sediment Control plans.
- (b) Compliance with the site's TDEC Construction general permit, TDEC ARAP, TDEC Underground Injection Well Permit, FEMA Flood Plain Development Permit, and other Federal or State permits where applicable.
- (c) Compliance with approved erosion prevention and sediment control plan and EPSC performance standards outlined in Article 7.
- (d) Implementation and maintenance of appropriate erosion prevention and sediment control best management practices.
- (e) Construction site operators must control wastes such as discarded building materials, concrete truck washout, chemicals, litter, and sanitary waste at the construction site to avoid adverse impacts to water quality.

(7) Land Disturbance Surety

Prior to the issuance of a permit for any land disturbance activity affecting more than five (5) acres, the applicant shall be required to provide a Land Disturbance Surety to the City of Gallatin to guarantee completion of all land and grade stabilization measures and improvements as shown by the approved grading plan. For smaller areas when potentially hazardous soil or drainage conditions exist due to types of soils, steep grades, floodplain development or nearby lakes, streams or large drainage ditches, the applicant may be required, at the discretion of the City Engineer, to provide a Land Disturbance Permit Surety to guarantee completion of all land and grade stabilization measures and improvements as shown by the approved plan.

(8) Permit Duration

Every Land Disturbance Permit shall expire and become null and void when one of the following has occurred:

- (a) Six months of no activity has occurred.
- (b) Final Stabilization of the site per the approved plans has occurred.
- (c) Issuance of the TDEC Notice of Termination.
- (d) Three years from issuance of Permit.
- (e) In the case of public infrastructure, acceptance by the City of Gallatin has occurred.

In cases of expiration of the Land Disturbance Permit, a permit may be re-issued with no additional fee, if the plan and scope of the project submitted on the original Land Disturbance Permit does not change significantly.

Article 6 Stormwater Management Performance Standards

(1) General

In order to address stormwater management for new development and redevelopment and to prevent or minimize water quality impacts, performance standards are set forth comprising of runoff reduction, pollutant removal, and runoff quantity requirements. Stormwater shall be

managed such that post development hydrology does not exceed the pre-development hydrology at the site, in accordance with the performance standards contained in this section.

(2) Applicability

The following stormwater performance standards apply to all new development and redevelopment projects that disturb greater than or equal to one acre, including projects less than one acre that are part of a larger common plan of development.

(3) MS4 Stormwater Design and BMP Manuals

- (a) The City adopts as its MS4 stormwater design and best management practices (BMP) manuals the following publications, which are incorporated by reference in this ordinance as if fully set out herein:
 - (i) City of Gallatin Design and Construction Manual
 - (ii) City of Nashville Stormwater Management Manual
 - (iii) Tennessee Permanent Stormwater Management and Design Guidance Manual

(4) Runoff Reduction Performance Criteria

The following performance criteria shall be addressed for stormwater management at all applicable sites effective upon June 9, 2015 utilizing methods outlined in the BMP Manuals referenced above:

- (a) Site must, in combination or alone, implement management measures that are designed, built, and maintained to infiltrate, evapotranspire, harvest and/or use, at a minimum, the first inch of every rainfall event preceded by 72 hours of no measurable precipitation. This first inch of rainfall must be 100% managed with no discharge to surface waters. Any alternative to addressing this requirement shall be obtained as outlined in Article 4 of this ordinance, unless the project falls under the incentive standards for re-developed sites.
- (b) Incentive Standards for re-developed sites: a 10% reduction in the volume of rainfall to be managed by runoff reduction for any of the following types of development. Such credits are additive such that a maximum reduction of 50% of the standard in the paragraph above is possible for a project that meets all 5 criteria:
 - (i) Redevelopment;
 - (ii) Brownfield redevelopment;
 - (iii) High density (>7 units per acre);
 - (iv) Vertical Density, (Floor to Area Ratio (FAR) of 2 or >18 units per acre)
 - (v) Mixed use and Transit Oriented Development (within ½ mile of transit)
- (c) Limitations to the application of runoff reduction requirements include, but are not limited to:
 - (i) Where a potential for introducing pollutants into the groundwater exists, unless pretreatment is provided;
 - (ii) Where pre-existing soil contamination is present in areas subject to contact with infiltrated runoff;
 - (iii) Presence of sinkholes or other karst features.
- (d) Pre-development infiltrative capacity of soils at the site must be taken into account in selection of runoff reduction management measures.

(5) Runoff Reduction Performance Criteria Alternative Options

For projects that cannot meet 100% of the runoff reduction requirement, unless subject to the incentive standards, alternative stormwater management measures shall be obtained as outlined in Article 4. For consideration of alternative, the following options are available:

- (a) The remainder of the stipulated amount of rainfall must be treated prior to discharge with a technology documented to remove 80% total suspended solids (TSS). The treatment technology must be designed, installed and maintained to continue to meet this performance standard.
- (b) The Runoff reduction measures are installed off-site within the same USGS 12-digit hydrologic unit code (HUC) as the original project. Off-site mitigation must be a minimum of 1.5 times the amount of water not managed on site. The off-site mitigation location and runoff reduction measures must be approved by the Engineering Division. The mitigation location shall be in a priority area identified by the Engineering Division. Mitigation can be used for retrofit or redevelopment projects, but should be avoided in areas of new development.
- (c) For projects that cannot meet the 100% runoff reduction, 80% TSS, and cannot provide for off-site mitigation, the applicant can make payment into the City's Stormwater Management Fund. Payment must be a minimum of 1.5 times the estimated cost of on-site runoff reduction controls as estimated by the Engineering Division.

(6) Channel Protection Performance Criteria

- (a) To protect stream channels from degradation, specific channel protection criteria shall be provided, including meeting the **Qcp** requirement as prescribed in the City of Gallatin Design and Construction Manual. This standard requires that the runoff volume from the 1-year frequency, 24-hour storm be captured and discharged over no less than a 24-hour period. In the design of the channel protection control, the 24-hour release period shall be measured from the approximate center-of-mass of inflow to the approximated center-of-mass of outflow.
- (b) Downstream channel protection provided by an alternative approach may be considered in lieu of controlling the Qcp, provided that sufficient hydrologic and hydraulic analysis shows that the alternative approach will offer adequate channel protection from erosion. Downstream channel protection provided by an alternative approach must be approved by the City Engineer.

(7) Downstream Flooding Performance Criteria

- (a) To prevent downstream flooding, post development flow rates for the **2-year thru 10-year 24-hour storm events** must be controlled to release at rates less than that of pre-development flows, with an emergency overflow capable of handling the 100-year discharge as prescribed in the City of Gallatin Design and Construction Manual.
- (b) Downstream flood protection provided by an alternative approach may be considered in lieu of controlling the 2-year thru 10-year 24 hour storms; provided that sufficient hydrologic and hydraulic analysis shows that the alternative approach will offer adequate flooding protection for downstream properties. Flooding protection provided by an alternative approach must be approved by the City Engineer.

(8) General Performance Criteria

- (a) Stormwater discharges to critical areas with sensitive resources (i.e., cold water fisheries, shellfish beds, swimming beaches, recharge areas, water supply reservoirs)

may be subject to additional performance criteria, or may need to utilize or restrict certain stormwater management practices.

- (b) Stormwater discharges from hot spots may require the application of specific structural BMPs and pollution prevention practices.
- (c) If hydrologic or topographic conditions warrant greater control than that provided by these performance standards, the Engineering Division may impose any and all additional requirements deemed necessary to control the volume, timing, rate, and treatment of runoff.

(9) Water Quality Buffers

A permanent water quality buffer zone (setback measured from the top of water body bank) shall be required along all wetlands, streams, and sinkholes as defined in this ordinance, for new development and redevelopment projects as outlined below:

- (a) Drainage areas less than 1 square mile: Minimum of 30' width
- (b) Drainage areas greater than 1 square mile: Minimum of 60' width. The 60' width can be established on an average width basis at a project, as long as the minimum width of the buffer zone is more than 30' at any measured location
- (c) For redevelopment projects that have existing encroachments into the prescribed buffer, the portion of the existing encroachment that contains a footprint within the buffer is exempt, if no modification to the existing use of the encroachment is to occur and does not violate the objectives of Article 4 (2). If modification to the existing use of the encroachment is to occur, buffer widths outlined above shall apply.
- (d) If existing encroachment is to remain in use, the encroachment amount shall be factored into the average buffer width in determining the buffer width.
- (e) Work within the Water Quality Buffer is allowable for the following types of work:
 - (i) Work covered and approved by an ARAP or CGP permit approved by TDEC.
 - (ii) Construction/maintenance of greenways and parks.
- (f) Any alternative stormwater management measure requested in lieu of the water quality buffer requirements shall be presented to the Gallatin Stormwater Design Appeals Board as outlined in Article 4 (3) for their decision.

(10) Sinkhole/Injection Well Policy

- (a) A TDEC injection well permit is required for any use or modification of a sinkhole/injection well.
- (b) Drainage calculations shall be submitted for any development in or around sinkholes.
- (c) Minimum standards for flood management around sinkholes are based on the 100-year 24 hour design storm, assuming plugged conditions (zero cfs outflow) for the sinkhole.
- (d) A permanent water quality buffer of 30' shall be provided around the highest complete contour around the sinkhole (also called the rim) and no structure or public infrastructure shall be built within 60' of the rim.
- (e) For any runoff draining to a sinkhole from a developed area, runoff reduction performance criteria must be met as outlined in this ordinance and the City of Gallatin Design and Construction Manual.
- (f) Post developed flows and volume shall not exceed pre developed flows and volume entering into a sinkhole.
- (g) Any "capping" of a sinkhole shall be done under the direction and approval of the City Engineering Division. Drainage formerly entering the capped sinkhole shall be

- accounted for and meet the standards outlined in (10)c above.
- (h) Any alternative stormwater management measure requested in lieu of the sinkhole/injection well policy requirements shall be presented to the Gallatin Stormwater Design Appeals Board as outlined in Article 4 (3) for their decision.

Article 7 Erosion Prevention and Sediment Control Performance Standards

(1) General

In order to address construction site runoff management for new development and redevelopment and to prevent or minimize pollutants from construction activities, performance standards are set forth comprising of erosion prevention and sediment control requirements.

(2) Applicability

The performance standards outlined in this Article shall be implemented in any new development and redevelopment project that disturbs greater than one acre, including projects less than one acre that are part of a larger common plan of development along with any project that requires a Land Disturbance Permit as outlined in Article 5 of this Ordinance.

(3) MS4 Erosion Prevention and Sediment Control (EPSC) Design and BMP Manuals

- (a) The City adopts as its MS4 EPSC design and best management practices (BMP) manuals the following publications, which are incorporated by reference in this ordinance as if fully set out herein:
- (i) City of Gallatin Design and Construction Manual
 - (ii) TDEC Erosion Prevention and Sediment Control Handbook
 - (iii) TDOT Manual for Management of Stormwater Discharges Associated with Construction Activity

(4) General Performance Criteria for EPSC Management

The following performance criteria shall be addressed for EPSC management at all sites:

- (a) All construction site operators shall implement appropriate EPSC best management practices (BMP)'s. All BMP's shall be consistent with those described in the above referenced design and BMP manuals and meet the current TDEC Construction General Permit requirements.
- (b) EPSC design must meet the requirements for design storms and special conditions for impaired waters as outlined in the latest TDEC Construction General Permit.
- (c) All construction site operators shall control waste materials including but not limited to; discarded building materials, concrete truck washout, chemicals, litter, and sanitary waste to avoid adverse impact to water quality.
- (d) If hydrologic, soil, or topographic conditions warrant greater control than that provided by these performance standards, the Engineering Division may impose any and all additional requirements deemed necessary to control the discharge of sediment or other illicit discharges to water of the state.

All applicable sites not meeting these criteria are subject to all enforcement actions and penalties outlined in Articles 11 and 12 of this Ordinance.

Article 8 Post Construction

(1) General

To ensure the long term maintenance and effectiveness of stormwater facilities, a surety for completion, as-built plans, and maintenance and inspection programs are required for new and existing development.

(2) Surety

Depending on the type and size of the development, the City may hold a surety to insure the completion of the development to City Standards. The amount of the surety will be determined by the City Engineering Division based upon the cost to complete the stormwater facilities. All sureties must contain automatic renewal provisions in language satisfactory to the City Attorney. Before final release of the Surety; all stormwater, EPSC, and stabilization measures must be completed, stabilized, and functioning to the satisfaction of the City Engineer.

(3) As-Built Plans

Prior to release of the surety for completion of the stormwater facilities, As-Built Plans are to be submitted for any stormwater facilities after final construction is completed. The plan must show the final constructed facilities will function as approved to meet the performance standards outlined in this ordinance. Plans shall be stamped by a Tennessee licensed surveyor. Any discrepancy from the final constructed facilities and the approved design shall be noted on the As-Built Plan. Where required by the City Engineer, updated calculations stamped by a Tennessee licensed engineer shall be submitted and approved by the City Engineer, showing the as-constructed facilities will function adequately to meet the performance standards of the Stormwater Ordinance.

Both digital CAD and paper copies shall be provided in the Tennessee State Plane Coordinate system, NAD83, NAVD88. The following shall be shown in the plan:

1. Invert elevation, top of casting elevation, slope, location, and material of all pipes, drainage inlets/outlets, junctions, etc.
2. Size and material of all outlet dissipation pads.
3. Ditch size, slope, and materials.
4. Top of berm elevations on all drainage facilities.
5. Volume of all detention/retention facilities.
6. Location and description of all permanent stormwater BMP's (i.e. rain garden, pervious pavement, buffer, etc.)

(4) New Stormwater Management Facilities Maintenance and Inspection

- (a) *Private Ownership*: Prior to final approval of any site or subdivision subject to the performance standards outlined in Article 6 of this ordinance, an *Inspection and Maintenance Agreement for Storm Water Facilities*, which is available in the office of the City Engineer, must be executed between the City of Gallatin and owners of the property. Said agreement runs with the land, and operates as a deed restriction binding on the current property owners and all subsequent property owners and their lessees and assigns,

including but not limited to homeowner associations or other groups or entities. Facilities are subject to penalties as outlined in Article 12 of the Stormwater Ordinance.

- (b) *Municipal Ownership*: The City shall be responsible for maintenance of all stormwater management facilities under Municipal Ownership as defined.

(5) Existing Stormwater Management Facilities Maintenance and Inspection

The City may, to the extent authorized by state and federal law, enter and inspect private property for the purpose of determining if there are illicit non-stormwater discharges and to verify that all stormwater management facilities are functioning within design limits. These inspections may be performed randomly or in response to complaints or violations. The ownership of the facilities will be made aware of any violations as outlined in the City's Enforcement Response Plan and are subject to penalties as outlined in Article 12 of the Stormwater Ordinance.

Article 9 Illicit Discharges

(1) General

In order to carry out the City's Illicit Discharge Detection and Elimination Program, illicit discharges, as outlined in Article 9 Section 3, are illegal to subject to penalties as outlined in Article 12 of the Stormwater Ordinance.

(2) Applicability

This section shall apply to all water generated on developed or undeveloped land entering the City's separate storm sewer system, including water generated by Hot Spots.

(3) Prohibition of Illicit Discharges

No person shall introduce or cause to be introduced into the municipal separate storm sewer system any discharge that is not composed entirely of stormwater or when applicable any discharge that flows from stormwater facility that is not in compliance with its approved Stormwater Facilities Inspection and Maintenance Agreement. Non-stormwater discharges shall include, but shall not be limited to, sanitary wastewater, car wash wastewater, radiator flushing disposal, spills from roadway accidents, carpet cleaning wastewater, effluent from septic tanks, improper oil disposal, laundry wastewater/gray water, improper disposal of auto and household toxics. The commencement, conduct or continuance of any non-stormwater discharge to the municipal separate storm sewer system is prohibited except as described as follows:

- (a) Uncontaminated discharges from the following sources:
 - (i) Water line flushing or other potable water sources
 - (ii) Landscape irrigation or lawn watering with potable water
 - (iii) Diverted stream flows
 - (iv) Rising ground water
 - (v) Groundwater infiltration to storm drains
 - (vi) Pumped groundwater
 - (vii) Discharges from potable water sources
 - (viii) Foundation or footing drains
 - (ix) Lawn watering
 - (x) Crawl space pumps
 - (xi) Air conditioning condensation

- (xii) Springs
- (xiii) Non-commercial washing of vehicles;
- (xiv) Natural riparian habitat or wetland flows;
- (xv) Swimming pools (if de-chlorinated - typically less than one PPM chlorine)
- (xvi) Street wash water
- (xvii) Firefighting activities
- (xviii) Any other uncontaminated water source.
- (b) Discharges specified in writing by the City as being necessary to protect public health and safety.
- (c) Dye testing
- (d) Discharges authorized by the TDEC Construction General Permit, which comply with Section 3.5.9 of the same:
 - (i) dewatering of work areas of collected stormwater and ground water (filtering or chemical treatment may be necessary prior to discharge);
 - (ii) waters used to wash vehicles (of dust and soil, not process materials such as oils, asphalt or concrete) where detergents are not used and detention and/or filtering is provided before the water leaves site;
 - (iii) water used to control dust in accordance with section 3.5.5;
 - (iv) potable water sources including waterline flushings from which chlorine has been removed to the maximum extent practicable;
 - (v) routine external building washdown that does not use detergents or other chemicals;
 - (vi) uncontaminated groundwater or spring water; and
 - (vii) foundation or footing drains where flows are not contaminated with pollutants (process materials such as solvents, heavy metals, etc.)

(4) Prohibition of Illicit Connections

The construction, use, maintenance or continued existence of illicit connections to the separate municipal storm sewer system is prohibited. This prohibition expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.

(5) Reduction of Stormwater Pollutants by the use of Best Management Practices

Any person responsible for a property or premises, which is, or may be, the source of an illicit discharge, may be required to implement, at the person's expense, the BMPs necessary to prevent the further discharge of pollutants to the municipal separate storm sewer system. Compliance with all terms and conditions of a valid NPDES permit authorizing the discharge of stormwater associated with industrial activity, to the extent practicable, shall be deemed in compliance with the provisions of this section.

(6) Notification of Spills

Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any known or suspected release of materials which are resulting in, or may result in, illicit discharges or pollutants discharging into stormwater, the municipal separate storm sewer system, the person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of hazardous materials the person shall immediately

notify emergency response agencies of the occurrence via emergency dispatch services. In the event of a release of non-hazardous materials, the person shall notify the City in person or by telephone, fax, or email, no later than the next business day. Notifications in person or by telephone shall be confirmed by written notice addressed and mailed to the City within three (3) business days of the telephone notice. If the discharge of prohibited materials emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three (3) years.

(7) No Illegal Dumping Allowed

No person shall dump or otherwise deposit outside an authorized landfill, convenience center or other authorized garbage or trash collection point, any trash or garbage of any kind or description on any private or public property, occupied or unoccupied, inside the City.

Article 10 Floodway/Floodplain

All provisions of the City of Gallatin Municipal Floodplain Ordinance as outlined in Article 10.03 of the Gallatin Zoning Ordinance shall be followed.

Article 11 Enforcement

(1) General

In order to enforce the provisions of this ordinance, the City of Gallatin shall have the Authority to issue Notices of Violation, Stop Work Orders suspending construction activities, suspend issuance of building permits, withhold approval of plans, and impose Civil Penalties as outlined in the City's Enforcement Response Plan (ERP). The ERP is located in the office of the City Engineer.

(2) Applicability

The provisions of this article shall be applicable to all new and existing construction, existing residential, commercial and industrial developments, hot spots, and any such property or facility which causes violations to the provisions of this ordinance.

Article 12 Penalties

(1) Violations

Any person who shall commit any act declared unlawful under this chapter, who violates any provision of this chapter, who violates the provisions of any permit issued pursuant to this chapter, or who fails or refuses to comply with any lawful communication or notice to abate or take corrective action by the City of Gallatin Engineering Division, shall be guilty of a civil offense.

(2) Penalties

Under the authority provided in Tennessee Code Annotated § 68-221-1106, the City declares that any person violating the provisions of this chapter may be assessed a civil penalty by the City of Gallatin Engineering Division of not less than fifty dollars (\$50.00) and not more than five

thousand dollars (\$5,000.00) per day for each day of violation. Each day of violation shall constitute a separate violation.

(3) Measuring Civil Penalties

In assessing a civil penalty, the City of Gallatin Engineering Division may consider:

- (a) The harm done to the public health or the environment;
- (b) Whether the civil penalty imposed will be a substantial economic deterrent to the illegal activity;
- (c) The economic benefit gained by the violator;
- (d) The amount of effort put forth by the violator to remedy this violation;
- (e) Any unusual or extraordinary enforcement costs incurred by the City;
- (f) The amount of penalty established by ordinance or resolution for specific categories of violations; and
- (g) Any equities of the situation which outweigh the benefit of imposing any penalty or damage assessment.

(4) Recovery of Damages and Costs

In addition to the civil penalty in subsection (2) above, the City may recover:

- (a) All damages proximately caused by the violator to the City, which may include any reasonable expenses incurred in investigating violations of, and enforcing compliance with, this chapter, or any other actual damages caused by the violation.
- (b) The costs of the City's maintenance of stormwater facilities when the user of such facilities fails to maintain them as required by this chapter.

(5) Other Remedies

The City may bring legal action to enjoin the continuing violation of this chapter, and the existence of any other remedy, at law or equity, shall be no defense to any such actions.

(6) Remedies Cumulative

The remedies set forth in this section shall be cumulative, not exclusive, and it shall not be a defense to any action, civil or criminal, that one (1) or more of the remedies set forth herein has been sought or granted.

Article 13 Appeals

Pursuant to Tennessee Code Annotated § 68-221-1106(d), any person aggrieved by the imposition of a civil penalty or damage assessment as provided by this chapter may appeal said penalty or damage assessment to the stormwater hearing authority.

(1) Stormwater hearing authority created

- a) A stormwater hearing authority is created, with the powers and jurisdiction as granted and set out herein and in T.C.A. 68-221-1106 as may hereafter be amended
 - i) The local stormwater hearing authority shall consist of five (5) members, all to be residents of the county. The members shall be appointed by the mayor and confirmed by a majority vote of the City council. Each member shall be appointed for a two-year term, and shall serve until their successor is appointed. Each member shall serve without compensation. Four (4) members shall be required for a quorum

to conduct business, but a lesser number of members may adjourn the meeting from day to day in the absence of a quorum. All decisions shall be by a majority vote of those present. Meetings shall be held at the call of the chairperson or mayor, by written notice, as required by law. The members shall elect from the members a chairperson annually.

- ii) The five (5) members shall consist of the following:
 - (1) One (1) member to be from a major industry.
 - (2) One (1) member to work in utilities.
 - (3) One (1) member to work in finance.
 - (4) Two (2) members shall be private citizens.
- iii) In the event of a conflict of interest involving any member, the mayor shall appoint a temporary replacement for the matter.

(2) Appeals to be in writing

The appeal shall be in writing and filed, with the appeal review fee (Appendix A), with the City Engineer for the City of Gallatin within thirty (30) days after the civil penalty, late fee and/or damage assessment is served in any manner authorized by law.

(3) Public hearing

Upon receipt of an appeal, the City's stormwater hearing authority shall hold a public hearing within thirty (30) days. Ten (10) days prior notice of the time, date, and location of said hearing shall be published in a newspaper of general circulation. Ten (10) days' notice by registered mail shall also be provided to the aggrieved party, such notice to be sent to the address provided by the aggrieved party at the time of appeal. The decision of the stormwater hearing authority of the City shall be final.

If a refund is due, the City Engineer shall authorize the refund and appeal review fee, which will be provided as the City Engineer deems as necessary.

(4) Appealing decisions of the stormwater hearing authority

Any alleged violator may appeal a decision of the City's stormwater hearing authority pursuant to the provisions of Tennessee Code Annotated, title 27, chapter 8.

Appendix A

**Property classifications and rates for review fees:
Schedule**

Stormwater Hearing Authority Review Fee: \$50

Stormwater Design Appeals Board Review Fee: \$50

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that Article III, Stormwater Utility, and all applicable rates and fees shall take effect on January 1, 2019. All other provisions of this Ordinance shall take effect immediately upon final passage, the public welfare requiring such.

PASSED FIRST READING: June 5, 2018.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

May 22, 2018

DEPARTMENT: Engineering

AGENDA # 7

SUBJECT:

ORDINANCE 01806-31 Amending GMC CHAPTER 18 Stormwater

SUMMARY:

ORDINANCE TO AMEND THE CITY OF GALLATIN, TENNESSEE MUNICIPAL CODE, CHAPTER 18, STORMWATER TO ESTABLISH A UTILITY FOR STORMWATER MANAGEMENT; TO ESTABLISH THE FUNCTION OF THE UTILITY; TO CREATE A SPECIAL REVENUE FUND AND METHOD OF FUNDING FOR THE UTILITY; AND TO FIX THE EFFECTIVE DATE OF THIS ORDINANCE.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 01711-95

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING TWO (2) PARCELS TALLING APPROXIMATELY 77.43 +/- ACRES, FROM THE IR-INDUSTRIAL RESTRICTIVE, IG-INDUSTRIAL GENERAL, R15-MEDIUM DENSITY RESIDENTIAL, AND R20-LOW DENSITY RESIDENTIAL DISTRICTS TO R15-MEDIUM DENSITY RESIDENTIAL PLANNED RESIDENTIAL DEVELOPMENT (R15-PRD) DISTRICT AND APPROVING A PRELIMINARY MASTER DEVELOPMENT PLAN FOR LANGLEY ESTATES, LOCATED EAST AND NORTH OF COLES FERRY ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of property submitted a complete application to rezone two parcels totaling 77.43 (+/-) acres described in Exhibits 'A' and 'B' with a Preliminary Master Development Plan for Langley Estates, located in the City of Gallatin, Tennessee; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the proposed rezoning will be compatible with surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and did not recommend approval of the proposed rezoning with Preliminary Master Development Plan; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and §13-7-203, T.C.A.; and

WHEREAS, the City Council has approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone two parcels, totaling 77.43 (±) acres, from IR-Industrial Restrictive, IG-Industrial General, R15-Medium Density Residential, and R20-Low Density Residential Districts to R15-Medium Density Planned Residential Development (R15-PRD) District, as described in Exhibit 'C' and approves the Preliminary Master Development Plan for Langley Estates as described in Exhibit 'D'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description – Entire Property

Exhibit B: 2006 Boundary Survey

Exhibit C: Legal Description (Appox.) based on 2006 Survey – IR to R15-PRD

Legal Description (Appox.) based on 2006 Survey – IG to R15-PRD

Legal Description (Appox.) based on 2006 Survey – R15 to R15-PRD

Legal Description (Appox.) based on 2006 Survey – R20 to R15-PRD

Exhibit D: Description of PMDP with conditions

EXHIBIT 'A'

HEIRS OF EDNA KING GUILD
77.43 ACRES (Carroll Carman Survey)

BEING located in the 3rd Civil District, Sumner County, Tennessee, on east and northeast sides of Coles Ferry Pike, and being a portion of the property of record in Will Book 19, Page 21, County Court Clerk's Office, Sumner County, Tennessee. See Tax Map 126, Parcel 7.00 P/O and Tax Map 134, Parcel 1.03, Tax Assessor's Office, Sumner County, Tennessee, and more particularly described as follows:

BEGINNING at an iron rod in the north margin of Coles Ferry Pike, same being the southeast corner of this tract and the southwest corner of Capurs Johnson; thence with said margin North 84 degrees 44 minutes 11 seconds West 1512.12 feet; thence North 84 degrees 28 minutes 08 seconds West 794.37 feet to a point, same being point of curvature of a curve proceeding clockwise, having a deflection angle of 87 degrees 01 minute 24 seconds, a radius of 63.43 feet, a tangent length of 60.22 feet, and a chord of North 40 degrees 57 minutes 26 seconds West 87.35 feet; thence along said curve an arc length of 96.35 feet to a point in the northeast margin of Coles Ferry Pike; thence with said margin North 02 degrees 33 minutes 18 seconds East 233.80 feet to a point, same being point of curvature of a curve proceeding counter-clockwise, having a deflection angle of 38 degrees 25 minutes 19 seconds, a radius of 357.90 feet, a tangent length of 124.71 feet, and a chord of North 16 degrees 39 minutes 22 seconds West 235.53 feet; thence along said curve an arc length of 240.00 feet; thence North 35 degrees 52 minutes 00 seconds West 89.94 feet; thence North 37 degrees 51 minutes 29 seconds West 1509.60 feet to a point, same being point of curvature of a curve proceeding counter-clockwise, having a deflection angle of 17 degrees 16 minutes 06 seconds, a radius of 277.07 feet, a tangent length of 42.07 feet, and a chord of North 46 degrees 29 minutes 34 seconds West 83.19 feet; thence along said curve an arc length of 83.51 feet to a power pole in said margin; thence leaving road and severing the Edna King Guild Heirs property North 78 degrees 46 minutes 55 seconds East 964.50 feet to an iron rod; thence South 86 degrees 34 minutes 54 seconds East 1142.68 feet to an iron rod; thence with line of Hoeganaes Corporation South 05 degrees 23 minutes 36 seconds West 613.31 feet to an iron rod; thence South 05 degrees 53 minutes 13 seconds West 434.94 feet to a concrete monument; thence South 06 degrees 41 minutes 34 seconds West 553.08 feet to an iron rod; thence South 84 degrees 31 minutes 01 second East 1574.88 feet to a concrete monument; thence with line of Loras Vaske and Capurs Johnson South 04 degrees 52 minutes 26 seconds West 440.58 feet to the point of beginning containing 77.43 acres more or less by survey by Carroll Dean Carman, Registered Land Surveyor, Tennessee Number 910, address 150 Middle Fork Road, Hartsville, Tennessee, 37074, dated January 24, 2006.

A TVA power transmission easement crosses the above described tract.

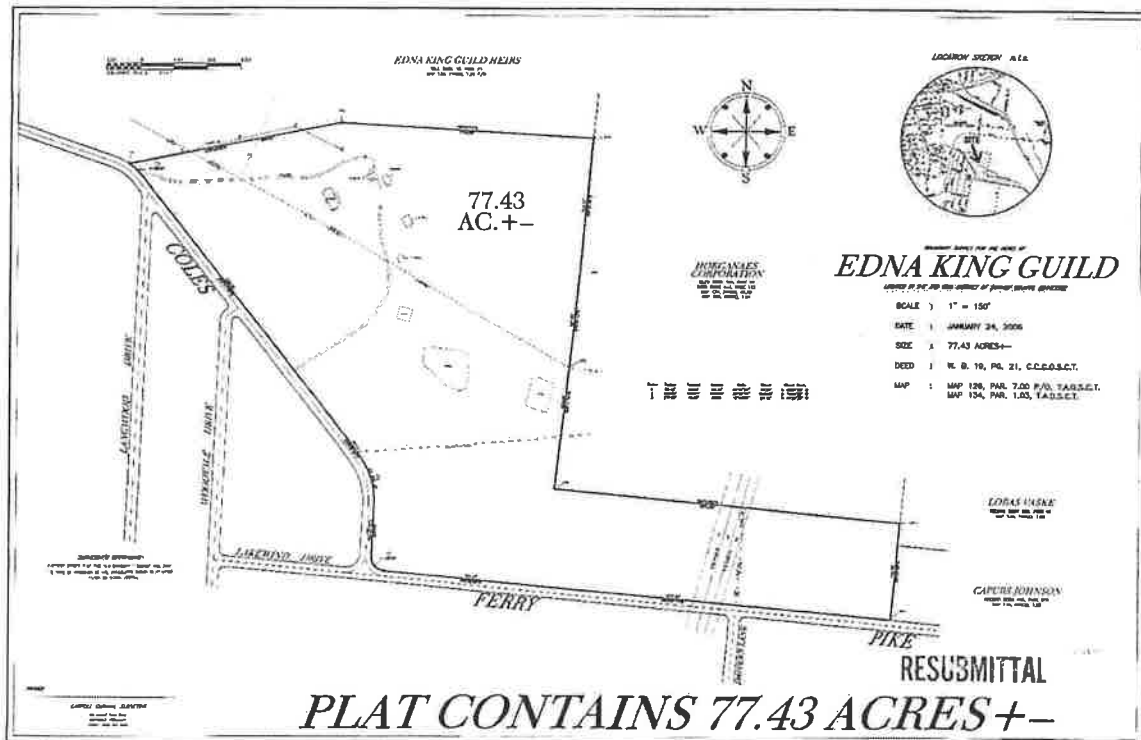


EXHIBIT 'B'

EXHIBIT 'C'

Legal Description - IR Zoning to R15-PRD Zoning

BEING located in the 3rd Civil District of Sumner County, Tennessee, being located northeasterly of the Coles Ferry Road and Langwood Drive intersection and being a portion of the Oak Tree Partners LLC Property as recorded in Record Book 3450, Page 831 in the Register's Office of Sumner County, Tennessee and being more particularly described as follows:

BEGINNING at an existing iron pin monument in the northerly right-of-way of Coles Ferry Road, said monument being the southeasterly corner common to the Oak Tree Partners LLC Property as recorded in Record Book 4433, Page 675 in the Register's Office of Sumner County, Tennessee;

Thence leaving said northerly right-of-way of Coles Ferry Road and continuing along with the southerly line of the Oak Tree Partners LLC Property, N 78°46'55" E a distance of 280.08' to a point, said point being the TRUE POINT OF BEGINNING;

Thence continuing along with the Oak Tree Partners LLC Property the following three calls: N 78°46'55" E a distance of 305.47' to a point;

Thence S 23°01'42" W a distance of 195.81' to a point;

Thence N 61°33'45" W a distance of 253.63' to a point, which is the point of beginning, having an area of 24,722 square feet, 0.57 acres more or less.

Legal Description - IG Zoning to R15-PRD Zoning

BEING located in the 3rd Civil District of Sumner County, Tennessee, being located northeasterly of the Coles Ferry Road and Langwood Drive intersection and being a portion of the Oak Tree Partners LLC Property as recorded in Record Book 3450, Page 831 in the Register's Office of Sumner County, Tennessee and being more particularly described as follows:

BEGINNING at an existing iron pin monument in the northerly right-of-way of Coles Ferry Road, said monument being the southeasterly corner common to the Oak Tree Partners LLC Property as recorded in Record Book 4433, Page 675 in the Register's Office of Sumner County, Tennessee;

Thence leaving said northerly right-of-way of Coles Ferry Road and continuing along with the southerly line of the Oak Tree Partners LLC Property, N 78°46'55" E a distance of 585.54' to a point, said point being the TRUE POINT OF BEGINNING;

Thence continuing along with the Oak Tree Partners LLC Property the following two calls: N 78°46'55" E a distance of 378.95' to an existing iron pin monument;

Thence S 86°34'54" E a distance of 1142.68' to an existing iron pin monument, said monument being the westerly line of the Hoeganaes Corporation Property as recorded in Deed Book 398, Page 41 and Deed Book 444, Page 113 in the Register's Office of Sumner County, Tennessee;

Thence leaving said Oak Tree Partners LLC Property and continuing along with the westerly line of the Hoeganaes Corporation Property the following two calls: S 05°23'36" W a distance of 613.31' to an existing iron pin monument;

Thence S 05°53'13" W a distance of 434.94' to an existing concrete monument;

Thence leaving said Hoeganaes Corporation Property and continuing across the Oak Tree Partners LLC Property the following three calls: N 59°48'01" W a distance of 1496.34' to a point;

Thence N 61°33'45" W a distance of 220.00' to a point;

Thence N 23°01'42" E a distance of 195.81' to a point, which is the point of beginning, having an area of 1,006,187 square feet, 23.10 acres more or less.

Legal Description - R15 Zoning to R15-PRD Zoning

BEING located in the 3rd Civil District of Sumner County, Tennessee, being located northeasterly of the Coles Ferry Road and Langwood Drive intersection and being a portion of the Oak Tree Partners LLC Property as recorded in Record Book 3450, Page 831 in the Register's Office of Sumner County, Tennessee and being more particularly described as follows:

BEGINNING at an existing iron pin monument in the northerly right-of-way of Coles Ferry Road, said monument being the southeasterly corner common to the Oak Tree Partners LLC Property as recorded in Record Book 4433, Page 675 in the Register's Office of Sumner County, Tennessee;

Thence leaving said northerly right-of-way of Coles Ferry Road and continuing along with the southerly line of the Oak Tree Partners LLC Property, N 78°46'55" E a distance of 280.08' to a point;

Thence continuing across the Oak Tree Partners LLC Property the following two calls: S 61°33'45" E a distance of 473.63' to a point;

Thence S 59°48'01" E a distance of 1496.34' to an existing concrete monument, said monument being the westerly line of the Hoeganaes Corporation Property as recorded in Deed Book 398, Page 41 and Deed Book 444, Page 113 in the Register's Office of Sumner County, Tennessee;

Thence leaving said Oak Tree Partners LLC Property and continuing along with the southerly and westerly lines of the Hoeganaes Corporation Property the following two calls: S 06°41'34" W a distance of 553.08' to an existing iron pin monument;

Thence S 84°31'01" E a distance of 864.84' to a point;

Thence leaving said Hoeganaes Corporation Property and continuing across the Oak Tree Partners LLC Property, S 04°52'26" W a distance of 443.30' to a point, said point being the northerly right-of-way of Coles Ferry Road;

Thence continuing along with the northerly right-of-way of Coles Ferry Road the following eight calls: N 84°44'11" W a distance of 802.10' to an existing iron pin monument;

Thence N 84°28'08" W a distance of 794.37' to an existing iron pin monument;

Thence with a curve turning to the right with an arc length of 96.15', with a radius of 63.43', with a chord bearing of N 41°02'47" W, with a chord length of 87.20', to an existing iron pin monument;

Thence N 02°33'18" E a distance of 234.00' to an existing iron pin monument;

Thence with a curve turning to the left with an arc length of 239.36', with a radius of 357.90', with a chord bearing of N 16°36'16" W, with a chord length of 234.93', to an existing iron pin monument;

Thence N 35°52'00" W a distance of 90.59' to an existing iron pin monument;

Thence N 37°51'29" W a distance of 1509.60' to an existing iron pin monument;

Thence with a curve turning to the left with an arc length of 83.51', with a radius of 277.07', with a chord bearing of N 46°29'32" W, with a chord length of 83.19', to an existing iron pin monument, which is the point of beginning, having an area of 2,028,301 square feet, 46.56 acres more or less.

Legal Description - R20 Zoning to R15-PRD Zoning

BEING located in the 3rd Civil District of Sumner County, Tennessee, being located northeasterly of the Coles Ferry Road and Langwood Drive intersection and being a portion of the Oak Tree Partners LLC Property as recorded in Record Book 3450, Page 831 in the Register's Office of Sumner County, Tennessee and being more particularly described as follows:

BEGINNING at an existing iron pin monument in the northerly right-of-way of Coles Ferry Road, said monument being the southwesterly corner common to the Capurs and Debra Johnson Property as recorded in Record Book 488, Page 800 in the Register's Office of Sumner County, Tennessee;

Thence leaving said Capurs and Debra Johnson Property and continuing along with the northerly right-of-way of Coles Ferry Road, N 84°44'11" W a distance of 710.02' to a point;

Thence leaving said northerly right-of-way of Coles Ferry Road and continuing across the Oak Tree Partners LLC Property N 04°52'26" E a distance of 443.30' to a point, said point being the southerly line of the Hoeganaes Corporation Property as recorded in Deed Book 398, Page 41 and Deed Book 444, Page 113 in the Register's Office of Sumner County, Tennessee;

Thence continuing along with the southerly line of the Hoeganaes Corporation Property, S 84°31'01" E a distance of 710.04' to an existing concrete monument, said monument being the westerly line of the Kristopher Schutter and Justin Strong Property as recorded in Record Book 3220, Page 167 in the Register's Office of Sumner County, Tennessee;

Thence leaving said southerly line of the Hoeganaes Corporation Property and continuing along with the westerly line of the Kristopher Schutter and Justin Strong Property and Capurs and Debra Johnson Property, S 04°52'26" W a distance of 440.58' to an existing iron pin monument, which is the point of beginning, having an area of 313,776 square feet, 7.20 acres more or less.

EXHIBIT 'D'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for Langley Estates, consisting of a seven (7) sheet plan, prepared by GreenLID Design, LLC, of Gallatin, TN, and three (3) architectural renderings, and dated August 28, 2017, with a final revision date of November 3, 2017, with the following conditions:

1. Remove "Multi-family Attached" from Proposed Use.
2. Correct required minimum open space area to indicate 20% required by the R15 PRD Bulk and Area Regulations table.
3. Adjust/Correct plan and/or land use chart to provide 20% open space as required.
4. Adjust line weights of utilities for legibility on Page C2.1.
5. Revise the bufferyards chart to accurately show code-required minimums.
6. Provide code-required minimum bufferyards adjacent to R15 zoning where missing.
7. Provide general conceptual plans and specifications for water and sanitary sewer installations to the Public Utilities Department per Section 15.07.030.D.I.b. (vii).
8. The applicant shall file an annexation petition with the City for that portion of the property not currently within the City Limits. Annexation shall be completed prior to adoption of an Ordinance to change the zoning on the properties.
9. The applicant shall file an application to amend the Gallatin on the Move Character Area for that portion of the property designated as Airport Road Industrial Character Area. The amendment shall be considered and approved by the Planning Commission prior to the final reading of the Ordinance to change the zoning on the properties.
10. Residences within this development that front or directly face Coles Ferry Road shall have a front façade comprised of at least 80% brick/stone/masonry and a brick skirt around the remaining facades.
11. Submit one (1) full-sized and two (2) half-sized, corrected folded copies of the Preliminary Master Development Plan.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

DECEMBER 12, 2017

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # *b*

SUBJECT:

Ordinance No. O1711-95 of the City of Gallatin, Sumner County, Tennessee, rezoning 77.43 (+/-) acres (Tax Map 126, Parcel 007.00, and Tax Map 134, Parcel 001.03) from IR-Industrial Restrictive, IG-Industrial General, R15-Medium Density Residential, and R20-Low Density Residential Districts to R15-Medium Density Residential Planned Residential Development (R15-PRD) District and approval of a Preliminary Master Development Plan for Langley Estates.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 77.43 (+/-) acres (Tax Map 126, Parcel 007.00, and Tax Map 134, Parcel 001.03) from IR-Industrial Restrictive, IG-Industrial General, R15-Medium Density Residential, and R20-Low Density Residential Districts to R15-Medium Density Residential Planned Residential Development (R15-PRD) District and approval of a Preliminary Master Development Plan for Langley Estates, for 174 single-family dwelling units, located east and north of Coles Ferry Road; Authorizing the revision to be indicated on the Official Zoning Atlas; Repealing conflicting ordinances; Providing for severability; and Providing an effective date.

On November 6, 2017, the Gallatin Municipal-Regional Planning Commission held a Special-Called meeting and did not recommend approval of a Resolution supporting the application (File #3-5505-17).

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R1801-1

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES UPON THE ANNEXATION OF A PARCEL (TAX MAP 104, PARCEL 093.00), CONSISTING OF 80.243 (+/-) ACRES, LOCATED WEST OF OLD DOUGLAS LANE, EAST OF HIGHWAY 109 AND NORTH OF HIDDEN TRAIL (PRIVATE ROAD), AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin received a petition by a property owner for the annexation of 80.243 (+/-) acres non-contiguous to the City boundary of the City of Gallatin; and

WHEREAS, the area proposed for annexation to the City of Gallatin is non-contiguous to the City of Gallatin, Tennessee city limits, but located within the City of Gallatin Planning Region and Urban Growth Boundary; and

WHEREAS, Tennessee Code Annotated permits the annexation of non-contiguous properties within the municipality's Urban Growth Boundary as described in § 6-51-104; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) as amended requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to T.C.A. § 6-51-102(b)(4), § 6-51-107, § 13-3-104, § 13-3-301, and § 13-4-103, reviewed and recommended approval of this Plan of Service, as contained in this Resolution, in GMRPC Resolution 2017-166.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area bounded as described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexed territory
Exhibit 'B' – Plan of Services

EXHIBIT 'A'

Legal Description –Tax Map and Parcel 104//093.00, 80.243 (+/-) Acres

LEGAL DESCRIPTION **(PER PUBLIC RECORDS)**

ALL THE LANDS DESCRIBED IN DEED BOOKS 3865 PAGE 220, 3865 PAGE 224, AND 3865 PAGE 228 AS RECORDED IN THE REGISTERS OFFICE OF SUMNER COUNTY TENNESSEE. CONTAINING 80.2 ACRES MORE OR LESS AND BEING THE SAME LANDS AS DESCRIBED BY THE FOLLOWING:

(PREPARED BY THE SURVEYOR)

A tract of land, situated along Old Douglas Road. Sumner County, TN. Being the lands described in Record Books 3865 page 220, 224. and 228 n the Register's Office of Sumner County, (R.O.S.C .,TN.); being more particularly described as follows:

Beginning at a point on the center line of Old Douglas Road being Northwesterly 1,925 feet +/- along said Road from Old State Highway 109, said point being the Southeast corner of Tract #2, Record Book 3865, Page 220; thence, South 82°10'17" West 2,551.97 feet along the lines of the subject tract and the Northerly lines of Parcels 113 003.01 00 (Armstrong, Rec Book 2927. page 213 ROSC, TN), 113 002.03 000 (Allison, Deed Book 391, page 722 ROSC, TN), 113 002.01 000 (Friends of HATS, Inc., Deed Book 139, page 742 ROSC, TN) and 113 002.02 000 (Sumner Special Housing, Inc., Record Book 1696, page 188 ROSC, TN) to a point at the Southwest corner of said Tract #2; thence, North 08°16'16" East 559.19 feet to a point at the Southwest corner of Tract #1 said Record Book 3865, Page 220; thence, North 08°46'00" East 1,278.92 feet along the Easterly line of Parcel 113 02.00 000 (Fair Haven, LLC, Record Book 2659, page 726 ROSC, TN) to a point at the Northwest corner of said Tract#1; thence, South 84°07'01" East 170.04 feet along the Southerly line of Parcel 104 092.00 000 (Newby, Record Book 3743, page 564 ROSC, TN) to a point at the Southwest corner of Parcel 104 092.01 001 (Anderson, Record Book 1191, page 161, Rose. TN); thence, south 82°27'24" East 544.81 feet along the southerly line of said parcel to a point at the southeast corner of said parcel; thence, North 08°05'47" East 321.01 feet along the Easterly line of said parcel to a point on said center line of Old Douglas Road; thence, along said center line, south 69°54'37" East 85.04 feet to a point on a curve to the left having a radius of 1000.00 feet and a central angle of 07°58'35": thence, 139.21 feet along said curve being subtended by a chord bearing South 73°53'55" East 139.10 feet to a point; thence, South 77°53'12" East 80.37 feet to a point on a curve to the right having a radius of 300.00 feet and a central angle of 23°25'48": thence, 122.6B feet along said curve being subtended by a chord bearing south 66°10'18" East 121.83 feet to a point; thence, south 54°27'25" East 358.00 feet to a point; thence South 55°04'15" East 318.73 feet to a point on a curve to the right having a radius of 700.00 feet and a central angle of 25°05'43": thence, 306.60 feet along said curve being subtended by a chord bearing south 42°31'24" East 304.15 to a point; thence, south 29°58'32" East 174.22 feet to a point on a curve to the right having a radius of 600.00 feet and a central angle of 15°38'26": thence, 163.79 feet along said curve being subtended by a chord bearing south 22°09'20" East 163.28 feet to a point; thence south 14°20'07" East 130.99 feet to a point on a curve to the left having a radius of 6,785.72 feet and a central angle of 4°35'30": thence 543.80 feet along said curve being subtended by a chord bearing South 16°37'52" East 543.66 feet to the Point of Beginning and containing 80.243 acres more or less.

EXHIBIT 'B'

PLAN OF SERVICE FOR TAX MAP 104, PARCEL 093.00 AND NORTH WATER AVENUE (OLD HIGHWAY 109) AND OLD DOUGLAS LANE (6-6301-17) pursuant to Tenn. Code Annotated § 6-51-102(b)

A. Water

Water service is currently provided by Gallatin Public Utility Department to this property. Water service can be made available to accommodate the development by extending water lines through developer-funded and constructed water mains.

B. Sanitary Sewer

Sanitary sewer service is currently not provided by Gallatin Public Utility Department to this property. Sanitary sewer service can be made available to accommodate the development by extending sewer lines through developer-funded and constructed sewer mains.

C. Street Construction and Maintenance

New public roadways will be constructed by the developer within Langford Farms. Once accepted by the City, the streets will be maintained by the City of Gallatin. Upon annexation, the City will maintain the rights-of-way. The City and County will enter into an Interlocal Agreement to describe the proposed roadway improvements. This will require a separate agreement between the City and the developer and the County and the developer to make improvements to Old Douglas Lane.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code.

E. Planning and Zoning Services

Upon annexation, the planning and zoning services will continue to provide services by the City of Gallatin.

F. Building Inspections and Code Enforcement Services

Upon annexation, building and code inspection services will continue to provide services by the City of Gallatin.

G. Fire Protection

The Gallatin Fire Department will provide fire protection after the effective date of the annexation. Upon development of the properties, the developer will provide fire hydrants in the annexation area pursuant to NFPA Life Safety Standards as determined by the City's Senior Fire Inspector. Once accepted by the City, the fire hydrants will be maintained by the City of Gallatin.

Gallatin Fire Station #3 has the appropriate number of personnel, department vehicles, and location to service this development. The developer will upgrade the water main size from an A2 to at least an A6 water main for adequate fire hydrants.

H. Police Protection

After the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department. The Police Department has indicated that additional police officers and departmental vehicles will be needed to provide service to this area and that continued growth of the city will impact manpower and resources.

I. Animal Control

The Public Works Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available to future residents of the property at the City's rates. Recreational facilities and programs will be provided with existing personnel, facilities, and resources.

K. Street Lighting and Electric Service

Cumberland Electric Membership Corporation currently services this area outside of Gallatin city limits. The Gallatin Electric Department and Cumberland Electric Membership Corporation will discuss service for this development at a future date consistent with Tennessee Code Annotated § 6-51-112.

Upon completion of any future street construction and acceptance by the City, street lighting will be extended into the annexed area in accordance with an Interlocal Agreement with Sumner County.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. An existing gas line is located parallel to Old Douglas Lane, adjacent to the front portion of the property. The Gallatin Public Utilities Department may authorize the extension of natural gas service from this existing line into the property upon development. Upon extension of gas lines by Gallatin Public Utilities, the City will oversee and monitor such lines.

M. School System

The City shall provide written notice to the Sumner County School System of the proposed annexation and proposed plan of development prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

DECEMBER 12, 2017

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # /

SUBJECT:

A Resolution No. R1801-1 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of Tax Map 104, Parcel 093.00, consisting of 80.243 (+/-) acres, located west of Old Douglas Lane, east of Highway 109 and north of Hidden Trail (private road).

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of Tax Map 104, Parcel 093.00, consisting of 80.243 (+/-) acres, located west of Old Douglas Lane, east of Highway 109 and north of Hidden Trail (private road); and providing an effective date.

On November 20, 2017 the Gallatin Municipal-Regional Planning Commission recommended approval of GMRPC Resolution 2017-166. (File 6-6301-17)

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R1801-2

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING A 80.243 (+/-) ACRE PARCEL (TAX MAP 104, PARCEL 093.00), LOCATED WEST OF OLD DOUGLAS LANE, EAST OF HIGHWAY 109 AND NORTH OF HIDDEN TRAIL (PRIVATE ROAD), INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PARCEL TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; AUTHORIZING ASSIGNMENT OF ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property of the affected area described in Exhibit 'A' submitted a petition to annex 80.243 (+/-) acres located non-contiguous to the City of Gallatin, Tennessee city limits, but located within the City of Gallatin Planning Region and Urban Growth Boundary; and

WHEREAS, the property is non-contiguous with the current City boundary of the City of Gallatin; and

WHEREAS, Tennessee Code Annotated permits the annexation of non-contiguous properties within the municipality's Urban Growth Boundary as described in § 6-51-104; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission has by a majority vote recommended approval of the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin approved a Plan of Service for the annexation area as described in Resolution No. R1801-1.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

SECTION 1. The City Council of the City of Gallatin does hereby annex the following property as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

SECTION 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

SECTION 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 5.

SECTION 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

SECTION 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this resolution are declared severable.

SECTION 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tennessee Code Annotated § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

ATTEST:

MAYOR PAIGE BROWN

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory

Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

Legal Description –Tax Map and Parcel 104//093.00, 80.243 (+/-) Acres

LEGAL DESCRIPTION
(PER PUBLIC RECORDS)

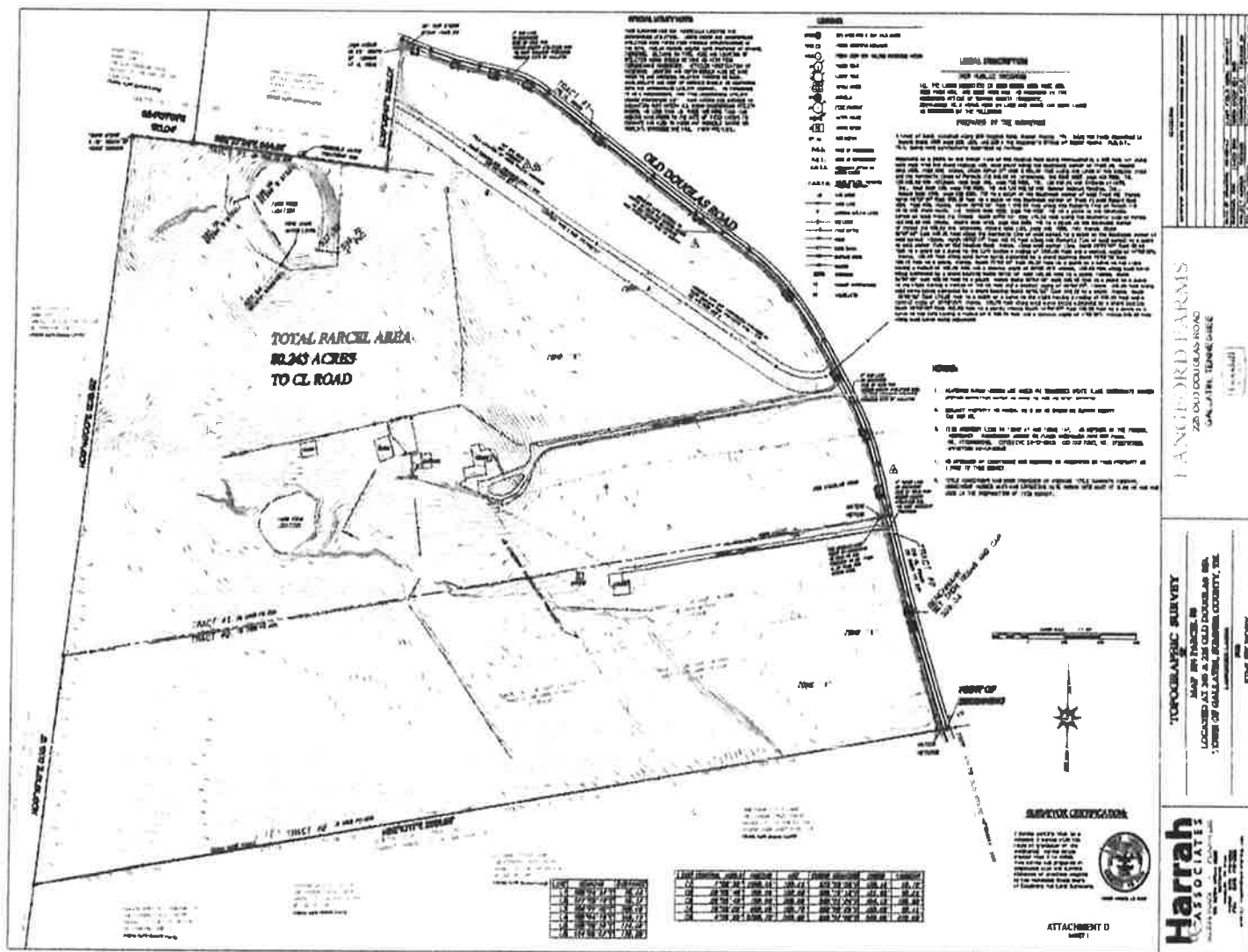
ALL THE LANDS DESCRIBED IN DEED BOOKS 3865 PAGE 220, 3865 PAGE 224, AND 3865 PAGE 228 AS RECORDED IN THE REGISTERS OFFICE OF SUMNER COUNTY TENNESSEE. CONTAINING 80.2 ACRES MORE OR LESS AND BEING THE SAME LANDS AS DESCRIBED BY THE FOLLOWING:

(PREPARED BY THE SURVEYOR)

A tract of land, situated along Old Douglas Road. Sumner County, TN. Being the lands described in Record Books 3865 page 220, 224. and 228 n the Register's Office of Sumner County, (R.O.S.C., TN.); being more particularly described as follows:

Beginning at a point on the center line of Old Douglas Road being Northwesterly 1,925 feet +/- along said Road from Old State Highway 109, said point being the Southeast corner of Tract #2, Record Book 3865, Page 220; thence, South 82°10'17" West 2,551.97 feet along the lines of the subject tract and the Northerly lines of Parcels 113 003.01 00 (Armstrong, Rec Book 2927. page 213 ROSC, TN), 113 002.03 000 (Allison, Deed Book 391, page 722 ROSC, TN), 113 002.01 000 (Friends of HATS, Inc., Deed Book 139, page 742 ROSC, TN) and 113 002.02 000 (Sumner Special Housing, Inc., Record Book 1696, page 188 ROSC, TN) to a point at the Southwest corner of said Tract #2; thence, North 08°16'16" East 559.19 feet to a point at the Southwest corner of Tract #1 said Record Book 3865, Page 220; thence, North 08°46'00" East 1,278.92 feet along the Easterly line of Parcel 113 02.00 000 (Fair Haven, LLC, Record Book 2659, page 726 ROSC, TN) to a point at the Northwest corner of said Tract#1; thence, South 84°07'01" East 170.04 feet along the Southerly line of Parcel 104 092.00 000 (Newby, Record Book 3743, page 564 ROSC, TN) to a point at the Southwest corner of Parcel 104 092.01 001 (Anderson, Record Book 1191, page 161, Rose. TN); thence, south 82°27'24" East 544.81 feet along the southerly line of said parcel to a point at the southeast corner of said parcel; thence, North 08°05'47" East 321.01 feet along the Easterly line of said parcel to a point on said center line of Old Douglas Road; thence, along said center line, south 69°54'37" East 85.04 feet to a point on a curve to the left having a radius of 1000.00 feet and a central angle of 07°58'35": thence, 139.21 feet along said curve being subtended by a chord bearing South 73°53'55" East 139.10 feet to a point; thence, South 77°53'12" East 80.37 feet to a point on a curve to the right having a radius of 300.00 feet and a central angle of 23°25'48": thence, 122.6B feet along said curve being subtended by a chord bearing south 66°10'18" East 121.83 feet to a point; thence, south 54°27'25" East 358.00 feet to a point; thence South 55°04'15" East 318.73 feet to a point on a curve to the right having a radius of 700.00 feet and a central angle of 25°05'43": thence, 306.60 feet along said curve being subtended by a chord bearing south 42°31'24" East 304.15 to a point; thence, south 29°58'32" East 174.22 feet to a point on a curve to the right having a radius of 600.00 feet and a central angle of 15°38'26": thence, 163.79 feet along said curve being subtended by a chord bearing south 22°09'20" East 163.28 feet to a point; thence south 14°20'07" East 130.99 feet to a point on a curve to the left having a radius of 6,785.72 feet and a central angle of 4°35'30": thence 543.80 feet along said curve being subtende by a chord bearing South 16°37'52" East 543.66 feet to the Point of Beginning and containing 80.243 acres more or less.

EXHIBIT 'B'
Map of the annexation territory



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

DECEMBER 12, 2017

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 2

SUBJECT:

A Resolution No. R1801-2 of the City of Gallatin, Sumner County, Tennessee, to Annex Tax Map 104, Parcel 093.00, consisting of 80.243 (+/-) acres, located west of Old Douglas Lane, east of Highway 109 and north of Hidden Trail (private road).

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, to Annex Tax Map 104, Parcel 093.00, consisting of 80.243 (+/-) acres, located west of Old Douglas Lane, east of Highway 109 and north of Hidden Trail (private road); authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

On November 20, 2017 the Gallatin Municipal-Regional Planning Commission recommended approval of GMRPC Resolution 2017-166. (File 6-6301-17)

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 01801-1

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING AN 80.243 (+/-) ACRE PARCEL (TAX MAP 104, PARCEL 093.00) FROM THE A-AGRICULTURAL RESIDENTIAL DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT AND APPROVING A PRELIMINARY MASTER DEVELOPMENT PLAN FOR LANGFORD FARMS, AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant for the property submitted a complete application for rezoning an 80.243 (+/-) acre parcel with a preliminary master development plan located west of Old Douglas Lane, east of Highway 109 and north of Hidden Trail (Private Road), outside of the City Limits, but within the Planning Region, of Gallatin, Tennessee; and

WHEREAS, the property is currently zoned A-Agricultural Residential; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Master Development Plan in GMRPC Resolution 2017-157; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the rezoning of a 80.243 (+/-) acre parcel from the A-Agricultural Residential zoning district to the MRO-Multiple Residential and Office zoning district as described in Exhibit 'A,' and approves the Preliminary Master Development Plan for Langford Farms as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING: January 2, 2018.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description

Exhibit 'B' – Preliminary Master Development Plan

Exhibit 'A'

Legal Description of Tax Map 104, Parcel 093.00, 80.243 (+/-) acres

LEGAL DESCRIPTION

(PER PUBLIC RECORDS)

ALL THE LANDS DESCRIBED IN DEED BOOKS 3865 PAGE 220, 3865 PAGE 224, AND 3865 PAGE 228 AS RECORDED IN THE REGISTERS OFFICE OF SUMNER COUNTY TENNESSEE. CONTAINING 80.2 ACRES MORE OR LESS AND BEING THE SAME LANDS AS DESCRIBED BY THE FOLLOWING:

(PREPARED BY THE SURVEYOR)

A tract of land, situated along Old Douglas Road, Sumner County, TN. Being the lands described in Record Books 3865 page 220, 224, and 228 in the Register's Office of Sumner County, (R.O.S.C., TN.); being more particularly described as follows:

Beginning at a point on the center line of Old Douglas Road being Northwesterly 1,925 feet +/- along said Road from Old State Highway 109, said point being the Southeast corner of Tract #2, Record Book 3865, Page 220; thence, South 82°10'17" West 2,551.97 feet along the lines of the subject tract and the Northerly lines of Parcels 113 003.01 00 (Armstrong, Rec Book 2927, page 213 ROSC, TN), 113 002.03 000 (Allison, Deed Book 391, page 722 ROSC, TN), 113 002.01 000 (Friends of HATS, Inc., Deed Book 139, page 742 ROSC, TN) and 113 002.02 000 (Sumner Special Housing, Inc., Record Book 1696, page 188 ROSC, TN) to a point at the Southwest corner of said Tract #2; thence, North 08°16'16" East 559.19 feet to a point at the Southwest corner of Tract #1 said Record Book 3865, Page 220; thence, North 08°46'00" East 1,278.92 feet along the Easterly line of Parcel 113 02.00 000 (Fair Haven, LLC, Record Book 2659, page 726 ROSC, TN) to a point at the Northwest corner of said Tract #1; thence, South 84°07'01" East 170.04 feet along the Southerly line of Parcel 104 092.00 000 (Newby, Record Book 3743, page 564 ROSC, TN) to a point at the Southwest corner of Parcel 104 092.01 001 (Anderson, Record Book 1191, page 161, Rose, TN); thence, south 82°27'24" East 544.81 feet along the southerly line of said parcel to a point at the southeast corner of said parcel; thence, North 08°05'47" East 321.01 feet along the Easterly line of said parcel to a point on said center line of Old Douglas Road; thence, along said center line, south 69°54'37" East 85.04 feet to a point on a curve to the left having a radius of 1000.00 feet and a central angle of 07°58'35"; thence, 139.21 feet along said curve being subtended by a chord bearing South 73°53'55" East 139.10 feet to a point; thence, South 77°53'12" East 80.37 feet to a point on a curve to the right having a radius of 300.00 feet and a central angle of 23°25'48"; thence, 122.66 feet along said curve being subtended by a chord bearing south 66°10'18" East 121.83 feet to a point; thence, south 54°27'25" East 358.00 feet to a point; thence South 55°04'15" East 318.73 feet to a point on a curve to the right having a radius of 700.00 feet and a central angle of 25°05'43"; thence, 306.60 feet along said curve being subtended by a chord bearing south 42°31'24" East 304.15 to a point; thence, south 29°58'32" East 174.22 feet to a point on a curve to the right having a radius of 600.00 feet and a central angle of 15°38'26"; thence, 163.79 feet along said curve being subtended by a chord bearing south 22°09'20" East 163.28 feet to a point; thence south 14°20'07" East 130.99 feet to a point on a curve to the left having a radius of 6,785.72 feet and a central angle of 4°35'30"; thence 543.80 feet along said curve being subtended by a chord bearing South 16°37'52" East 543.66 feet to the Point of Beginning and containing 80.243 acres more or less.

Exhibit 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for Langford Farms, consisting of a one (1) sheet plan, prepared by Harrah & Associates of Franklin, TN, with computer file number T263028_BN, dated June 5, 2017, with a final revision date of October 17, 2017 and a five (5) sheet plan, prepared by Kimley-Horn of Nashville, TN, with project number 118213000, dated October 20, 2017 with the following conditions:

1. Provide a minimum of 35 percent of brick or stone materials.
2. Provide color renderings of the housing models illustrating the variation or design guidelines.
3. Label the open space tracts on the overall site layout (Sheet 2).
4. Correct the proposed minimum lot area to 4,500 square feet in the bulk regulation table (Sheet 3).
5. Correct the typical lot width identification across the two (2) lots to each lot in the Typical Lot Layout (Sheet 3).
6. Label the 10-foot P.U.D.E. in the rear yard and 5-foot side yard in the Typical Lot Layout (Sheet 3).
7. Label the Alternative Type 15 Bufferyard along the northern, southern, and western boundaries and the Type 10 Bufferyard (12' wide) along the eastern boundary on the overall site layout (Sheet 3).
8. Correct the bufferyard proposed to Alternative Type 15 Bufferyard and provide a Type 10 Bufferyard (12' wide) planting requirements in the Bufferyard Requirements on Sheet 3.
9. Correct the surrounding zoning for properties as identified as ID 13, 16, 17, to CG-Commercial General, ID 18 to R40-Low Density Residential and ID 23 to A-Agricultural Residential on Sheet 1 (Topographic Survey Sheet).
10. Show and label proposed utility locations (water, sewer, storm sewer, etc.).
11. Indicate the street stub to the property boundaries. (At the FMDP review, a note or graphic will be required to indicate future extension at these streets.)
12. Submit one (1) full-sized and four (4) half-sized, corrected folded copies of the Preliminary Master Development Plan for Langford Farms to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

DECEMBER 12, 2017

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 3

SUBJECT:

An Ordinance No. O1801-1 of the City of Gallatin, Sumner County, Tennessee, amending the zoning on a 80.243 (+/-) acre parcel from the A-Agricultural Residential district to the MRO-Multiple Residential and Office district and approving a Preliminary Master Development Plan for Langford Farms.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 80.243 (+/-) acre parcel (Tax Map 104, Parcel 093.00) from the A-Agricultural Residential district to the MRO-Multiple Residential and Office district and approving a Preliminary Master Development Plan for Langford Farms, containing 262 single-family residential lots, eight (8) open space tracts and six (6) rights-of-way, located west of Old Douglas Lane, east of Highway 109 and north of Hidden Trail (Private Road); authorizing the revision to be indicated on the Official Zoning Atlas; Repealing conflicting ordinances; Providing for severability; and Providing an effective date.

On November 20, 2017 the Gallatin Municipal-Regional Planning Commission recommended approval of GMRPC Resolution 2017-157. (File 3-6308-17)

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R1806-41

RESOLUTION TO REVISE THE EMPLOYEE PAY PLANS

WHEREAS, Section 13-106 of the Gallatin Municipal Code provides for the adjustment of wages based on general rates of pay for comparable work in other public and private employment in the area, cost of living data, the financial condition of the city, and other economic considerations;

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, to grant a general wage increase to all full-time and permanent part-time employees, excluding Elected Officials, equal to one percent (1%) of their pay level, effective **June 24, 2018**; and to implement the attached pay plan schedules which reflect the changes described herein.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 12, 2018

DEPARTMENT: **Human Resources**

AGENDA # 7

SUBJECT:

Resolution to revise the employee pay plans.

SUMMARY:

Resolution to revise the employee pay plans to reflect a general wage increase (cost-of-living) of 1%.

RECOMMENDATION:

Approve

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R1806-42

**RESOLUTION AMENDING GALLATIN PERSONNEL RULES AND
REGULATIONS RELATING TO TRAINING, PERSONAL PROTECTIVE
EQUIPMENT AND CERTIFICATION/LICENSE REIMBURSEMENT**

WHEREAS, Section 13-104 of the Gallatin Municipal Code provides for amendment of the Personnel Rules;

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin Personnel Rules and Regulations, **Rule 15, Section 15-4 (d) Specialized (Outservice) Training** is hereby amended as follows:

- (d) An employee on full-time assignment shall agree to reimburse the Municipal Government for training expenses, other than salaries and wages, paid by the Municipal Government, if he/she does not continue employment in the Service for reasons other than permanent disability, retirement or death after completion of the training assignment for a period of three years or twice the training time, whichever is greater. Such training shall be calculated on the basis of quarter hours rather than calendar time. Forty-five quarter hours shall equal one year of a cost-reimbursed, job-related course. Semester hours shall be equated to the quarter-hour requirement. Such reimbursement shall be made within six months after separation from the Service and shall be for an amount proportionate to the uncompleted period of service specified. In exceptional circumstances, the Department Head may waive this requirement with the approval of the Mayor.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin Personnel Rules and Regulations, **Rule 15, Section 15-5 (h) Certification/License Reimbursement Program** is hereby amended as follows:

- (h) Employees shall sign a statement agreeing to prompt re-payments of funds paid by the City in the event of separation for reasons other than permanent disability, retirement or death within three years after the completion of any requested assistance. Such reimbursement shall be made within six months after separation from the Service and shall be for an amount proportionate to the uncompleted period of service specified. In exceptional circumstances, the Department Head may waive this requirement with the approval of the Mayor.

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after the date of final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL, CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY, CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 12, 2018

DEPARTMENT: **Human Resources**

AGENDA # 6

SUBJECT:

Resolution to amend Personnel Rules & Regulations relating to Reimbursement of Specialized Training and Certification/License Funds.

SUMMARY:

Resolution to change the time frame that requested reimbursement funds must be paid to the City from one year to six months.

RECOMMENDATION:

Approve

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R1806-43

RESOLUTION ADOPTING A STRATEGIC PLAN FOR THE CITY OF GALLATIN

WHEREAS, THE CITY OF GALLATIN contracted with the Greater Nashville Regional Council to facilitate the development of its first-ever strategic plan document to clearly communicate its short-term priorities to align city government with the expectations of its residents;

WHEREAS, THE CITY OF GALLATIN has drafted the strategic plan in accordance with its guiding vision, “*Big Opportunities in a Small City*,” to ensure that Gallatin is among the safest, smartest, and healthiest small cities in America;

WHEREAS, THE CITY OF GALLATIN has defined core values, “*True Grit*” and “*Amazing Grace*,” to ensure the guiding vision is achieved by honoring the city’s character and respecting its long-standing ideals rooted in tenacity, resiliency, kindness, faith, and integrity;

WHEREAS, THE CITY OF GALLATIN has established a comprehensive set of strategic goals and commitments that city leadership have pledged in order to realize the city’s vision;

WHEREAS, THE CITY OF GALLATIN has identified priority actions scheduled to occur over the next five years that move the city towards the goals outlined in the strategic plan.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the City of Gallatin hereby adopts *The City of Gallatin Strategic Plan, A Plan to Listen, Lead, and Deliver* attached hereto as Exhibit A.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this Resolution shall take effect on final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY



The Strategic City

A Plan to Listen, Lead, and Deliver

Framework Document
June 19, 2018

Acknowledgments

This document was prepared for the City of Gallatin with assistance from the Greater Nashville Regional Council under guidance from the Mayor and Council, the Economic Development Agency, and staff directors of city departments.

Mayor and City Council

- The Honorable Paige Brown, Mayor
- The Honorable Lynda Love, Council District 1
- The Honorable Steve Camp, Council District 2
- The Honorable Jimmy Overton, Vice Mayor and Council District 3
- The Honorable Craig Hayes, Council District 4
- The Honorable John Alexander, Council District 5
- The Honorable Shawn Fennell, Council at Large
- The Honorable Ed Mayberry, Council at Large

City Department Heads

- Chuck Stuart, Building & Electrical Codes Official
- Connie Kittrell, City Recorder
- David Brown, Director of Parks & Recreation
- David Gregory, Superintendent of Public Utilities
- Debbie Johnson, Director of Human Resources
- Donald Bandy, Chief of Police
- James Fenton, EDA Executive Director
- Jeff Hentschel, Communications Director
- Lori Smiley, Chief Information Officer
- Nick Tuttle, City Engineer
- Rachel Nichols, Director of Finance
- Susan High-McAuley, City Attorney
- Victor Williams, Fire Chief
- William McCord, City Planner
- Zach Wilkinson, Public Works Director

About the GNRC

The Greater Nashville Regional Council (GNRC or Regional Council). GNRC is a public body corporate and politic initially created by the Tennessee Development District Act of 1965. GNRC is a regional planning and economic development agency whose membership includes city and county governments across 13 counties in Middle Tennessee. The Regional Council administers a variety of state and federal grants programs on behalf of local governments and offers economic and community development services, policy and planning assistance, and aging and disability counseling to its member communities.

Summary Brief

About the Plan

This section serves as a brief introduction to strategic planning and provides an overview of the process used by the City of Gallatin to-date.

Vision and Values

This section documents the vision and values which guide the city's strategic plan. The vision sets the direction for the city, and the values describe the set of standards which will determine the approach to its realization.

Strategic Goals and Commitments

This section presents a list of goals and strategic commitments of the city. Each were developed through extensive conversation and brainstorming with members of the City Council, city department heads, and a select group of community stakeholders representing business, education, economic development, and social services.

Priority Actions

This section presents a list of proposed actions that should be taken by the city within the next five years to ensure that leadership remains focused on promoting Gallatin's economy while minimizing growing pains.

Appendices

The appendices to the plan includes a glossary of key terms and acronyms, a list of participants involved in the strategic planning process, and two technical reports. The first provides an overview of the methodology used to develop the strategic plan. The second presents highlights of the city's existing conditions and trends for key quality of life issues such as population and demographics, housing, transportation, parks and recreation, among others.

Table of Contents

Section 1. About the Plan	1
Purpose of a Strategic Plan	1
Development of the Plan.....	1
About this Document	2
Section 2. Vision and Values.....	3
Section 3. Strategic Goals and Commitments	4
Goal 1 - Visionary and Engaged Leadership	4
Goal 2 - Resilient and Diversified Economy	5
Goal 3 - Purposeful and Planned Growth.....	6
Goal 4 - Connected and Inclusive Communities.....	7
Goal 5 – Enhanced Service Delivery and Prioritized Investments.....	8
Section 4. Priority Actions	9
Priority Actions for Year One.....	9
Priority Actions for Year Two.....	9
Actions for Years Three through Five	10
Section 5. Additional Information and Resources.....	11
Planning Resources	11
General Resources.....	11
Appendix A. Glossary	1
Appendix B. Participant List.....	1
Appendix C. Methodology Report	1
Appendix D. Existing Conditions and Trends Report.....	1

Section 1. About the Plan

Purpose of a Strategic Plan

A strategic plan is a management tool that helps an organization focus resources, optimize operations, and align its leadership, staff, and partnerships toward a set of common goals – often aimed at achieving a stated vision. For many municipal governments, a strategic plan serves to establish short-term priorities for policy initiatives, budgeting and staffing decisions, and capital investment in order to achieve specific outcomes that are important to its customers - the community at large.

Nearly every city has a variety of planning documents that establish policies or allocate resources to address community issues ranging from transportation infrastructure to parks and recreation to economic development. Many of these plans are tasked with thinking long-term and often are developed by individual departments within city government without the necessary buy-in or coordination from others. The key benefit of a strategic plan is that it allows city leadership to take a step back and think holistically about how to use its resources and departmental staff to address their community's top priorities. A good strategic plan will ensure that all other plans are well coordinated and working together to implement a shared vision.

A strategic plan is:	A strategic plan is not:
A way to communicate the city's vision, core values, and priority commitments to customers and economic and community development partners.	Intended to be a complete list of all of the actions a city should take, or investments that should be made, to grow the city.
Focused on short-term actions that can align the City's attention, and budget, with its most pressing priorities.	A substitute for a city's long-range general plan (also known as a comprehensive plan) that establishes policies for future development and infrastructure investment.
Best when it is managed as a living document with major updates at least every 5 years.	A one-time effort that can sit on a shelf and remain relevant.

Development of the Plan

Facilitation and Consultant Services

The strategic plan is being developed through a partnership between the City of Gallatin and the Greater Nashville Regional Council (GNRC). The GNRC is a regional planning and economic development agency whose membership includes city and county governments across 13 counties in Middle Tennessee, including the City of Gallatin. GNRC administers a variety of state and federal grants programs on behalf of local governments and offers economic and community development services, policy and planning assistance, and aging and disability counseling to its member communities.

The city contracted with GNRC in early 2017 to facilitate the development of its first-ever strategic plan and to assist with a major update to "Gallatin on the Move," which serves as the city's comprehensive growth plan.

City Leadership and Community Stakeholder Involvement

The strategic planning process, to-date, has largely focused on internal collaboration among city elected leadership and departmental staff. This introspective approach provided for candid conversation among key individuals within city government and sought to establish shared expectations and goals for subsequent community engagement that will follow the release of the first draft to the City Council in May. That said, GNRC has reached out to a select group of community stakeholders to identify the range of perspectives that the city is expected to represent. A complete list of participants and documentation of outreach methods and findings can be found in appendix B and appendix C, respectively.

- | | |
|------------------------------|---|
| • September 28, 2017 | Initial scoping meeting between city staff and GNRC |
| • November 1 to 14, 2017 | Surveys, one-on-one meetings with City Council members |
| • November 16, 2017 | Kickoff session with City Council members |
| • December 1 to 14, 2017 | Surveys, one-on-one meetings with department heads |
| • December 18, 2017 | Kickoff session with department heads |
| • Jan. through March, 2018 | Community stakeholder surveys and meetings |
| • February 8, 2018 | Visioning session with council members and department heads |
| • March 20 to 22, 2018 | Review draft framework with Mayor and City Council members |
| • March 23 to April 16, 2018 | Dept. heads and community stakeholders review and comment |
| • April 16 to May 1, 2018 | Final drafting of strategic plan |
| • May 22, 2018 | Present draft strategic plan at City Council work session |
| • TBD | Present final strategic plan at City Council meeting |

About this Document

This document serves to communicate to local elected leadership and community stakeholders the draft framework for the city government's first-ever strategic plan. The framework is presented for discussion purposes only as GNRC and the project team work to refine the strategic commitments and recommendations prior to the full plan's adoption by the City Council. The strategic plan includes five key elements including:

- **Vision** – A statement which describes what organizational success will look like in the future.
- **Values** – The guiding principles or ethical standards that will determine the approach to realizing the vision.
- **Strategic Goals & Commitments** – A set of desired outcomes and promises that will align the city with its vision over the long-term.
- **Priority Actions** – The most important steps that can be taken in the near-term to fulfill the city's commitments and move the organization towards its goals.

The formatting of this document is streamlined in order to focus attention on the draft content. The final design of the strategic plan will incorporate photographs, illustrations, charts, and infographics to communicate key concepts to a broader audience.

Section 2. Vision and Values

Vision	A statement which describes what organizational success will look like in the future.
“Big Opportunities in a Small City”	<i>The vision of city leaders is to ensure Gallatin is among the safest, smartest, and healthiest small cities in America.</i>

Values	The guiding principles or ethical standards that will determine the approach to realizing the vision.
“True Grit”	<i>Honors the city’s roots while taking risks to ensure continued prosperity. Prepares for the future with tenacity, resilience and visionary leadership.</i>
“Amazing Grace”	<i>Embraces character while investing in the future with kindness, faith and integrity. A snapshot of the past shapes what will become in the future.</i>

Section 3. Strategic Goals and Commitments

Goal 1 - Visionary and Engaged Leadership

Gallatin should have a bold vision, and the leadership and tools necessary to implement that vision.

1. **Focus on Priorities.** City leadership is in position to accomplish a first for Gallatin with the adoption of the strategic plan. The living document will serve as the city's playbook to realign budget resources and department initiatives with the most pressing community priorities as the city prepares for the future.
2. **Ask Citizens for Regular Feedback.** Measuring the pulse of the community on a regular basis through statistically valid citizen satisfaction surveys will provide the feedback necessary to know if the city is on the right track with its initiatives and investments. Moreover, benchmarking those survey results with peer cities will provide an opportunity to show where Gallatin is outperforming its economic competitors in important quality of life indicators.
3. **Foster Community Partnerships and Networking.** Gallatin is changing fast and city government alone cannot be expected to address all of the social, environmental, and economic concerns that have surfaced in recent years. The city should convene a community leadership network to help implement the city's strategic commitments and to build additional capacity to find and deliver solutions that improve quality of life for all residents.
4. **Provide Access to Leadership Opportunities.** Gallatin has a tremendous pool of young talent, established career professionals, and retirees with a great wealth of knowledge who are eager to contribute to the city's future. The city should work to make participation on the council, boards, commissions, and committees more accessible. The city should find community partners to help educate current and future leaders about key issues, and to provide training that will improve the quality of leadership and governing.
5. **Engage in Regional Policy Conversations.** Middle Tennessee has a strong network of mayors and business leaders who have a proven track record of delivering infrastructure decisions and legislative ideas to benefit cities and counties across the entire region. Gallatin should leverage its relationships with leaders from other communities through organizations like the Greater Nashville Regional Council, and build upon its existing partnerships with private non-profit organizations like area chambers of commerce, Leadership Middle Tennessee, and Cumberland Region Tomorrow for further education, inspiration, and connections to best practices.

Goal 2 - Resilient and Diversified Economy

Gallatin should continue to support and grow its existing economic base while pursuing new markets that offer competitive salaries and stable employment for citizens.

1. **Expand Workforce Training Partnerships.** Without a doubt, the number one strategy to retain and recruit business to the area is to offer employers easy access to a trained and capable workforce. Gallatin should expand its partnership with Volunteer State Community College and Sumner County Schools to ensure that current and future employers are participating in the design of curriculum needed to produce a productive workforce.
2. **Build Up from the Current Economic Base.** Gallatin's economy is deeply rooted in blue color industries and it should continue to play to those strengths by focusing on attracting office operations for its existing industries as it looks expand into the corporate sector. Gallatin also should continue its efforts to recruit information technology companies, leveraging its partnerships with the local post-secondary institutions that are currently experiencing an increase in enrollment in IT-related fields. These programs include Volunteer State Community College's Mechatronics program, which is the blending of engineering fields including mechanical, controls, electronic and computer engineering to automate manufacturing, distribution and complex services through multiple industries, as well as non-manufacturing, standard IT training, resulting in professional programmers, developers, coders, etc., desired and needed occupations.
3. **Improve Transportation and Community Infrastructure.** The city should continue to work with regional and state partners to develop major roadway projects already in the pipeline to support economic development expansion, while embracing the future of regional mass transit to support transit oriented development opportunities along SR 386. The city is in the envious position of owning and operating its utilities and should continue to invest in expanding those services to new sites.
4. **Market SR 386 and SR 109 Corridors as Major Employment Centers.** The city should continue work with the Forward Sumner Economic Partnership to create a nationally marketable destination along the SR 386 "Northeast Transportation" or "Net" corridor as a center for corporate jobs that will help Gallatin accelerate its ability to offer more and higher paying office jobs. State Route 109 has recently been expanded to improve freight movement in support of additional growth in industrial and logistic sectors.
5. **Actively Prepare Sites for Future Employment Growth.** The city should think long-term about where future employment growth will be located and, if not already done, acquire property in these areas, while at the same time ensuring that the appropriate land use policy, zoning code, and design standards are in place ahead of recruitment efforts. Publicly owned land and utilities that are already in place and shovel ready are a tremendous asset that increases Gallatin's competitiveness. In addition the city should work with TN ECD and GNRC to pursue EDA and FastTrack grants to supplement local funding for on-site improvements.

Goal 3 - Purposeful and Planned Growth

Gallatin should manage growth and direct new development in a way that balances economic expansion with a desire to preserve history and small city charm. Unplanned growth can exacerbate unwanted growing pains in the form of traffic congestion and decreased affordability.

1. **Engage the Community in Conversations about Growth and Development.** The city should conduct a robust public participation process to actively engage all citizens of Gallatin. This process should seek to include participation from all citizens and should ensure that participation is representative of all demographics living and working in Gallatin. This community engagement should be an ongoing engagement process.
2. **Adopt a Comprehensive Growth Plan.** The city should adopt an updated version of “Gallatin on the Move” or develop an entirely new citywide comprehensive plan that is built upon a robust public participation process. The plan should be consistent with the city’s strategic plan as it formalizes policies to guide economic growth and land use, the preservation of historic and cultural assets, and the future investment in community facilities and infrastructure.
3. **Clarify Roles and Responsibilities.** The city should work to enhance the relationship and clarify roles between boards and committees that influence community design and development decisions.
4. **Preserve Community Character.** The city should work to preserve Gallatin’s character, charm, and cultural integrity amidst ongoing growth and development. Current and future growth plans should include strategies for protecting historic properties and cultural assets.
5. **Define the Edges.** The city should focus on creative placemaking to provide Gallatin with a unique sense of identity and feel that sets the city apart from its neighbors and lets citizens and visitors know that they have arrived in the city. This not only includes creating attractive gateways and entrances into the city that are welcoming and accurately define Gallatin’s city limits, but it also includes ways to buffer differently zoned areas into a more cohesive landscape that supports the needs and desires of these various pockets of density without segregating them from one another.

Goal 4 - Connected and Inclusive Communities

Gallatin should create of sense of place and belonging for all, with an emphasis on public safety and affordability.

1. **Maintain Affordability.** Like many cities in Middle Tennessee, Gallatin is faced with the complex issue of overall affordability of its city. Among other things, affordability relates to the intersection of housing, transportation costs, and the wage gap that exists between a person's income and what and where they can afford to live. The city should convene residents and developers to further discuss disparity among the factors of affordability found in the city. Additionally, the city should research and utilize tools already available that help communities to promote affordability.
2. **Prioritize Public Safety.** Gallatin is already recognized as one of the safest cities in Tennessee and as such, must continue to adequately invest in its police and fire departments to keep pace with the continued growth of the city and the expectations of citizens wanting to live in a safe community.
3. **Empower Community Organizations.** The city should leverage the expertise and capacity of community leaders from local non-profits and faith-based organizations to enhance and expand much-needed social services and basic necessities to those individuals. These leaders are already working on the front lines with the most vulnerable citizens of Gallatin and have proven track records of success coordinating services and supports to these individuals.
4. **Link Communities with Pedestrian/Bicycle Connections.** The city should consider increasing its amount of pedestrian and bicycle infrastructure to offer people multiple ways to get where they want to go and a safe, comfortable experience for people of all ages and abilities. These types of connections bring neighborhoods together, and increase ease of access to areas that are otherwise only reachable by car, helping to mitigate some of the congestion currently plaguing the city.
5. **Promote Destinations throughout the City.** Residents should have compelling reasons to explore all parts of their community. The city should work to create opportunities to bring neighbors together by promoting destinations in each part of the city.

Goal 5 – Enhanced Service Delivery and Prioritized Investments

Gallatin should embrace data and technology to help streamline city government for its customers and to prioritize investments in services and infrastructure.

1. **Identify Metrics.** The city should identify performance measures and establish meaningful targets to track progress of city performance.
2. **Budget for Performance.** The city should incorporate strategic plan goals into the budgeting process by creating an accountability dashboard that offers a transparent view of city performance to all citizens. In addition to the public-facing dashboard, internal processes surrounding budget requests should be reviewed and updated to fit within this new accountability tool.
3. **Align Capital Plans with Priorities.** The city should reform its capital improvement planning to align future investments with adopted plans and community priorities. The process should include a clear and transparent system for project prioritization and scheduling, and guidance for pursuing additional resources beyond the constraints of the local budget.
4. **Evaluate Council-Departmental Management Structure.** The city should review roles in responsibilities of the Mayor’s Office and Council in selecting and evaluating department heads with an emphasis on ensuring that the city’s talent is aligned with the goals and commitments of the strategic plan.
5. **Improve Customer Experiences.** The city should identify opportunities to improve interaction with customers with a focus on technology to help simplify and streamline the experience. These interactions include bill paying, registering for services, applying for a variety of permits, as well as commercial, industrial, and residential plan reviews to reduce the burden on contractors and businesses.

Section 4. Priority Actions

This section provides a list of actions that the city should take within the next five years to ensure that leadership remains focused on the strategic goals and commitments identified in Section 3.

Priority Actions for Year One

Action	Lead Department(s)
1. Formally Adopt the Strategic Plan	City Council
2. Establish Community Partnership Network to Empower Local Organizations to Assist with Strategic Commitments and Priority Actions	City Council, Mayor's Office
3. Begin Bi-Annual Citizen Satisfaction Surveys to Provide Regular Feedback to Council and to Benchmark Community Perceptions and Attitudes against Peers	Mayor's Office
4. Conduct Large-Scale Community Engagement to Establish a Long-Term Vision for the City's Continued Growth and Development	City Council, Mayor's Office, Planning Department
5. Adopt a Major Update to the Comprehensive Plan to align City Growth Policies with the Community Vision	City Council, Mayor's Office, Planning Department

Priority Actions for Year Two

Action	Lead Department/ Partners
6. Launch a Performance Measure Dashboard to Track the City's Progress towards Goals	City Council, Mayor's Office, Finance Department
7. Reform the Capital Improvements Planning Process to Prioritize City Investments according to Adopted Plans and Financial Constraints	City Council, Mayor's Office, Finance Department
8. Implement Performance-Based City Budgeting to Incentivize Departmental Activities which Advance the Strategic Plan	City Council, Mayor's Office, Finance Department, Community Partnership Network
9. Update Community Design Standards and Zoning Ordinances to Align with the Comprehensive Plan	City Council, Mayor's Office, Planning Department
10. Review City Government Organizational and Management Structure to Include Department Head Hiring and Performance Evaluation Process	City Council, Mayor's Office, Human Resources Department

Actions for Years Three through Five

Action	Lead Department/ Partners
11. Support the Creation of "Leadership Gallatin" to Inform Current and Future Leaders about Issues and Resources	Economic Development Agency, Chamber of Commerce
12. Develop an Information Technology Deployment Plan to Improve City Operations and Enhance Customer Service	Mayor's Office, Information Technology Department
13. Develop a Housing Toolkit for City and Community Leaders to Assist in Maintaining Affordability for Workforce and Senior Adults	Mayor's Office, Community Partnership Network
14. Support the Standardization of the Collection and Sharing of Datasets and Information among Local Governments in Sumner County	Information Technology Department, Planning Department
15. Develop Prospectus and Marketing Materials to Promote Nationally the SR 386 and SR 109 Corridors and other Shovel-Ready Sites for Economic Development	Economic Development Agency, Forward Sumner, Chamber of Commerce
16. Develop a Plan to Expand and Promote Events and Attractions to Encourage Greater Social Interactions among Local Residents and Additional Investment by Visitors and Tourists; Enhance Wayfinding	Mayor's Office, Parks and Recreation Department, Chamber of Commerce
17. Employ a Professional Grants Coordinator/ Writer Dedicated to Finding Resources to Supplement City Revenue	Mayor's Office, Finance Department
18. Update Employee Onboarding Process and Deploy On-the-Job Training for Existing Employees to Convey the Significance of Job Duties in Relation to the City's Strategic Plan	Human Resources Department
19. Evaluate the Potential for Establishing a City Arts Commission to Focus on Creative Placemaking and Community Engagement	City Council, Mayor's Office
20. Expand Opportunities to Conduct Peer Exchanges with Leadership of Communities Across Tennessee and Nation to Expose the City to Best Practices and Emerging Trends	City Council, Mayor's Office, Chamber of Commerce

Section 5. Additional Information and Resources

Planning Resources

Interested in Additional Information about the Strategic Plan?

Find more information about the Strategic Plan and how it was developed at GallatinTN.gov.

Have comments about the strategic plan or specific suggestions for moving the city forward? E-mail them to Strategies@GallatinTN.gov

Want to shape the future of the City of Gallatin?

The City of Gallatin is launching a major update to “Gallatin on the Move” in 2018. This comprehensive plan for growth and development sets forth policies that shape community design and development, historic and cultural preservation, and future investment into local infrastructure like roads, sidewalks, parks, and other community facilities.

Sign up now to receive information about how to get involved by visiting GallatinTN.gov/StrategicPlanNotify

General Resources

Have questions about city departments and services?

Ask Angela! Angela is the Mayor’s Assistant and long-time employee of the City of Gallatin. Her form is a quick way to get answers or referrals to programs and services you need. Ask Angela at GallatinTN.gov/AskAngela.

Want to attend an upcoming City Council meeting or view recordings of past meetings?

Official city meetings are open to the public and citizens are encouraged to participate in their government. City Council sessions are videotaped, air on Comcast Cable 19 and are streamed live and archived on the City’s website. More information, including the Council meeting schedule and Gallatin TV can be found at GallatinTN.gov/MainCalendar.

Interested in starting or moving a business to Gallatin?

The work of the Gallatin Economic Development Agency serves as a catalyst for progressive and diverse economic development through community growth to ensure Gallatin’s prosperity. We are here to help with business expansion, relocation, new operations, retail locations, and corporate offices.

Contact **James Fenton, Executive Director, City of Gallatin Economic Development Agency** at 615-451-5940 or by email at EDAinfo@GallatinTN.gov.

Interested in a job with the City of Gallatin?

Click “**Jobs**” at GallatinTN.gov to view and apply for current openings. You can also “*register for email alerts*” to be notified when new positions in your interest areas are advertised.

Appendix A. Glossary

Action Steps – Action steps are specifics to achieve the strategies. Action steps take into account deadlines, quantifiable specifics, persons committed to doing the work, outsourcing, resources, etc.

Baseline - Base level of previous or current performance that can be used to set improvement goals and provide a basis for assessing future progress.

Benchmarking - Gathering information about model efforts or best practices by other organizations engaged in similar endeavors to help establish project targets and goals.

Building Codes – A set of rules that specify standards for constructed objects. These standards are designed to protect the health, safety, and general wellbeing of the public. Codes are generally in the form of construction permits. The process for permits is generally as follows: plan review, permit issuance, and inspection of the project throughout.

Buy-in - Obtaining agreement from key stakeholders that the proposed plan is acceptable.

Capacity Building - The development of an organization's core skills and capabilities, such as building leadership, management, finance and fund-raising, programs and evaluation, in order to build the organization's effectiveness and sustainability. The process of assisting an individual or group to identify and address issues and gain the insights, knowledge, and experience needed to solve problems and implement change. Capacity building is facilitated through the provision of technical support activities, including coaching, training, specific technical assistance, and resource networking.

Capital - Assets that are available for on-going business needs to produce income.

Capital Improvement - Addition to an organization's fixed assets. Capital improvement is the improvement result from an outlay of funds over a specific and finite period of time that results in a permanent addition to an organization's fixed assets.

Capital Improvement Plan (CIP) - A plan for maintaining assets to continue programs.

Comprehensive Plan – The plan that dictates public policy related to a community's goals and aspirations in terms of community development. Issues addressed in the plan generally includes land use, infrastructure, transportation, utilities, recreation, and housing.

Collaboration - To work together sharing ideas and resources, especially in a joint intellectual effort.

Constituency - A group served by an organization or institution; a clientele.

Cost-Benefit Analysis - A management tool that involves calculating or estimating analysis the monetary costs and potential benefits of a proposed course of action.

Demographics - The characteristics of human populations and population segments, especially when used to identify consumer markets.

Diversity - Difference, distinctness, variety.

Environmental Scan - Analysis of the elements or forces that affect the environment in which an organization functions.

Facilitator - A person who makes it easier for other people to accomplish objectives by offering advice and assistance in solving problems, either with technical issues or with other people.

Federal Mandates - Any provision in a bill or joint resolution before Congress or mandates in a proposed or final Federal regulation that would impose a duty that is enforceable by administrative, civil, or criminal penalty or by injunction (other than a condition of the bill or joint resolution or implementing regulation).

Focus Group - A qualitative research process designed to elicit opinions, attitudes, beliefs, and perceptions from individuals to gain insights and information about a specific topic.

Forecasting - The process of making predictions of the future based on past and present data and, most commonly by analysis of trends.

Goals and Objectives - The terms are synonymous. Goals are the major thrusts for the organization. The planning process should result in three to seven goals. They should be SMART: Specific, Measurable, Attainable, Realistic, and Timed.

Impact Evaluation - Evaluations that look specifically at whether or not the evaluation program achieved its goals and had its intended effect. An outcome or impact evaluation measures the final results of a program or initiative. (Also referred to as an Outcome Evaluation).

Inclusivity - Broadness in orientation or scope (frequently used in terms of broadness of culture and ethnicity).

Internal Assessment - Analysis of an organization's position, performance, assessment problems, and potential.

Interview - A research process that obtains structured information from an individual or group of individuals, usually based upon an established set of questions and/or probes.

Jurisdiction - The limits or territory within which authority may be exercised.

Mission Statement - The mission statement is the foundation of the organization's purpose. It identifies the organization, the constituency, and the services in one to three precisely worded sentences; also serving a PR purpose. Mission statements are frequently found in or adapted from the bylaws or articles of incorporation.

Needs Assessment - A structured process to determine the needs of a designated assessment survey field, i.e., individuals, an agency, a system, etc.

Operating Costs - The day-to-day expenses incurred in running an organization costs or project, as opposed to costs associated with production.

Outcomes - The long-term end goals that are influenced by the project, but that usually have other influences affecting them as well. Outcomes reflect the actual results achieved, as well as the impact or benefit, of a program.

Outcome Evaluation - Evaluations that look specifically at whether or not the evaluation program achieved its goals and had its intended effect. What were the "outcomes" of this program? An outcome or impact evaluation measures the final results of a program or initiative (also referred to as "Impact Evaluation").

Output - A type of performance measure that focuses on the level of activity in a particular program.

Peer City – A city or area that embodies the same qualities as the city you’re measuring against. Generally, market characteristics, such as geography, demographics of citizens, and economic features are compared and measured. Comparisons against peer cities help to illustrate best practices, opportunities, and challenges that the city being measured may learn from.

Performance Measures – Tools or information used to measure results and ensure measures accountability.

Pilot Study – A “scaled down” version of a major effort conducted before a larger study to test feasibility. For example, a pilot study might test proposed measurement instruments, hone the research methodology, or see if there is a preliminary basis for supporting the hypothesis.

Quantitative Research – Quantitative studies rely upon statistics and measures that research can be expressed numerically. In order to make valid inferences from quantitative research, certain rules need to be followed in terms of the research design and sampling methods.

Qualitative Research – Qualitative research is conducted in a more interpretive and research contextual fashion and goes beyond the “facts and figures” gathered by objective measures. Qualitative research attempts to measure the complexity of a given topic and often involves narrative responses to questions, rather than categorical responses.

Resource Allocation – The determination and allotment of resources or assets allocation necessary to carry out strategies and achieve objectives, within a priority framework.

Request for Proposal (RFP) – A formal invitation containing a scope of work which seeks a formal response (proposal) describing both methodology and compensation to form the basis of a contract. An RFP is prepared by the customer to solicit proposals from potential providers.

SWOT Analysis – An abbreviation used to denote analysis of an organization’s internal Strengths and Weaknesses and external Opportunities and Threats. Also called an “internal/external assessment.”

Stakeholder – Any person or group with a vested interest in the outcome of a project or plan.

Strategic Plan – A strategic plan is a management tool that helps an organization focus resources, optimize operations, and align its leadership, staff, and partnerships toward a set of common goals – often aimed at achieving a stated vision.

Strategies – Strategies fall under goals. While the goals indicate direction for the organization, the strategies more specifically identify directives for achieving the goals. From a PR perspective, the strategies are judged as to what actions the organization will be undertaking to benefit members.

Survey – A study where data are collected by way of questionnaires or interviews. Surveys can either be observational, if no intervention or treatment occurred, or can be used as pre-test and post-test measures before and after some intervention or treatment.

Trends – A general direction in which something is developing or changing.

Underserved Populations – Groups identified as potential clients who are not receiving populations the full extent of services an organization provides, often because of a history of exclusion due to race or ethnicity.

Urban Growth Boundary (UGB) – A regional boundary set in an attempt to control urban sprawl by mandating that the area inside the boundary be used for urban development and the area outside the boundary be preserved in its natural state or used for agriculture.

Vision Statement - A lofty statement that answers: "What do we want to be in the long-term future? In writing a vision statement, consider that you have unlimited resources and thus you can take the industry or profession in the best direction to meet their needs. For example, "XYZ organization will be the premier organization in the state to serve the needs of all professionals."

Zoning Ordinances- Written regulations and laws that define how property in specific geographic zones can be used. Zoning ordinances specify whether zones can be used for residential or commercial purposes, and may also regulate lot size, placement, bulk (or density) and the height of structures.

Appendix B. Participant List

Available under separate cover.

Appendix C. Methodology Report

Available under separate cover.

Appendix D. Existing Conditions and Trends Report

Available under separate cover.

Respectfully prepared by the Greater Nashville Regional Council - A regional planning and economic development agency serving 13 counties and 52 cities across Middle Tennessee.

